

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxix.]
[1 GEO. 6.] *Act, 1937.*



CHAPTER lxix.

An Act to provide for the transfer of the Holme reservoirs to the mayor aldermen and burgesses of the borough of Huddersfield and for the transfer of one of those reservoirs from the said mayor aldermen and burgesses to the Holmfirth Urban District Council to authorise the said mayor aldermen and burgesses to construct waterworks and to confer further powers upon them with reference to the supply of water gas and electricity to provide for the transfer to the said mayor aldermen and burgesses of the Lindley Mechanics Hall and to make further provision for the local government of the borough and for other purposes. [6th July 1937.] A.D. 1937.

WHEREAS the borough of Huddersfield in the west riding of the county of York (in this Act referred to as "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation"):

And whereas the Corporation are the owners of the waterworks for supplying and are supplying water within the borough and the neighbourhood thereof and powers in regard to their waterworks have been conferred upon the Corporation by the Huddersfield Water Act 32 & 33 Vict. 1869 and by the several local Acts and Orders confirmed c. ex. by Parliament amending or extending that Act:

A.D. 1937.

— And whereas the trade and population and the demand for water within the limits of supply of the Corporation have increased and are still increasing and the existing reservoirs and works of the Corporation do not afford a supply of water sufficient for the requirements of the public within those limits :

7 Will. 4.
c. liv.

And whereas by an Act passed in the seventh year of the reign of His late Majesty King William IV intituled “ An Act for making and maintaining certain
“ reservoirs in the several townships of Holme Cart-
“ worth Austonley Upperthong Wooldale and Hepworth
“ in the several Parishes of Kirkburton and Almond-
“ bury in the West Riding of the County of York ” certain commissioners (called “ the Commissioners of the Holme Reservoirs ”) were incorporated and empowered to construct the reservoirs referred to in that Act including the reservoirs known as the Bilberry reservoir the Holme Styres reservoir and the Boshaw Whams reservoir respectively referred to in this Act :

16 & 17 Vict.
c. cxxxviii.

And whereas by an Act passed in the sixteenth and seventeenth years of the reign of Her late Majesty Queen Victoria intituled “ An Act for the Adjustment
“ of the Debts of the Commissioners of the Holme
“ Reservoirs and of the Interest due thereon and for
“ enabling them to restore and repair their Reservoirs
“ and for other Purposes ” the last mentioned Act was in effect repealed and certain directors were incorporated under the name of “ the directors of the Holme reservoirs ” (in this Act called “ the Holme directors ”) and the reservoirs and other property of the said commissioners were vested in the said directors power being conferred upon them to levy rates and to borrow money on the security thereof :

And whereas the Holme directors have in exercise of the powers aforesaid borrowed sums of money on mortgage on the security of the rates aforesaid but interest on such mortgages has not been paid by them for many years :

And whereas it is expedient subject to the provisions of this Act to transfer to the Corporation the Bilberry reservoir the Holme Styres reservoir and the Boshaw Whams reservoir of the Holme directors :

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxix.]
1 GEO. 6.] *Act, 1937.*

And whereas it is expedient that the Corporation should be authorised to construct the additional water-works by this Act authorised : A.D. 1937.
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And whereas the Holme Styes reservoir is situate within the urban district of Holmfirth and water is supplied in that district by the urban district council thereof in pursuance of the powers conferred upon them by the Public Health Acts :

And whereas the demand for water within the said urban district of Holmfirth is increasing and the existing waterworks of the said urban district council are not sufficient for meeting the requirements of that district :

And whereas it is expedient to authorise the transfer by the Corporation to the said Holmfirth Urban District Council of the Holme Styes reservoir under and subject to the provisions which are contained in this Act :

And whereas it is expedient to make further provision as in this Act contained in regard to the water undertaking of the Corporation and the supply of water by them :

And whereas the Corporation are the owners of the undertakings whereby the borough and certain areas in the neighbourhood thereof are supplied with gas and electricity and it is expedient to confer further powers upon the Corporation with reference to their gas and electricity undertakings and the supply of gas and electricity by them :

And whereas an agreement has been entered into between trustees of the buildings in the borough which are known as the Lindley Mechanics Hall and the Corporation for the transfer of that hall to the Corporation and it is expedient that such agreement be confirmed and that the said hall be transferred to the Corporation as provided in this Act :

And whereas the Corporation have adopted the Local Government and other Officers' Superannuation Act 1922 and it is expedient to enact the further provisions which are in this Act contained with regard to the payment of superannuation allowances by the Corporation and as to the conditions under which allowances and other payments may be paid or made to officers and servants of the Corporation and to the dependants of such officers and servants : 12 & 13
Geo. 5. c. 59.

A.D. 1937.

And whereas it is expedient to make further and better provision in regard to the local government of the borough and to enlarge the powers of the Corporation with regard thereto as provided in this Act :

And whereas it is expedient that the provisions with regard to the finances of the Corporation which are contained in this Act should be made and that the Corporation should be empowered to borrow moneys for the purposes of or referred to in this Act :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

	£
Purchase of lands - - - -	62,635
Acquisition of easements - - -	100
The construction of Work No. 1 authorised by this Act - - -	459,715
The construction of Works Nos. 2 3 and 4 - - - -	8,050
The construction of Work No. 9 -	20,000
The construction of Works Nos. 6 8 and 10 - - - -	68,500
The construction of Works Nos. 7 and 11 (except filtration plant pumping and other machinery) - - -	11,830
Filtration plant (Work No. 7) and pumping and other machinery (Work No. 11) - - - -	19,170
The extension of mains and other purposes of the water undertaking	50,000

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed :

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxix.]
1 GEO. 6.] *Act, 1937.*

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the town clerk of the borough and with the clerk of the county council of the administrative county of the west riding of Yorkshire and are hereinafter respectively referred to as the deposited plans sections and book of reference : A.D. 1937.
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May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Huddersfield Short title.
Corporation Act 1937.

2. This Act is divided into Parts as follows :—

Division
of Act into
Parts.

Part I.—Preliminary.

Part II.—Waterworks.

Part III.—Water supply.

Part IV.—Lindley Mechanics Hall.

Part V.—Superannuation.

Part VI.—Finance.

Part VII.—Miscellaneous.

3.—(1) The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

(a) The Lands Clauses Acts with the following exceptions and modification:—

(i) sections 127 to 132 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act; 8 & 9 Vict. c. 18.

A.D. 1937.

PART I.
—cont.

(ii) the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section;

10 & 11 Vict.
c. 17.

(b) The Waterworks Clauses Act 1847 except—

(i) the words “ with the consent in writing “ of the owner or reputed owner of any such “ house or of the agent of such owner ” in section 44;

(ii) sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit); and

(iii) section 83 (with respect to the yearly receipt and expenditure of the undertakers);

26 & 27 Vict.
c. 93.

(c) The Waterworks Clauses Act 1863; and

8 & 9 Vict.
c. 20.

(d) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act “ the railway ” means the waterworks authorised by this Act and “ the centre of the railway ” means the centre of such waterworks respectively.

(2) In the construction of the provisions of the Lands Clauses Acts the Waterworks Clauses Acts 1847 and 1863 and the Railways Clauses Consolidation Act 1845 the expressions “ the promoters of the undertaking ” “ the undertakers ” and “ the company ” mean respectively the Corporation and in the application of the Waterworks Clauses Act 1847 section 7 shall have effect as if the clerk of the county council were therein mentioned instead of the clerk of the peace.

Interpre-
tation.

26 Geo. 5. &
1 Edw. 8.
c. 49.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1936 shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxiix.]
1 GEO. 6.] Act, 1937.

(2) In this Act unless the subject or context otherwise requires— A.D. 1937.

PART I.
—cont.

“ The Corporation ” means the mayor aldermen and burgesses of the borough of Huddersfield;

“ The borough ” means the county borough of Huddersfield;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough;

“ The mayor ” “ the town clerk ” and “ the treasurer ” mean respectively the mayor the town clerk and the treasurer of the borough;

“ The county council ” means the county council of the west riding of Yorkshire;

“ The Holmfirth Council ” means the Holmfirth Urban District Council;

“ The Public Health Acts ” means the Public Health Act 1875 and the Acts amending and extending the same; 38 & 39 Vict. c. 55.

“ The Act of 1936 ” means the Public Health Act 1936;

“ The Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act; 9 & 10 Geo. 5. c. 57.

“ The tribunal ” means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“ The Act of 1922 ” means the Local Government and other Officers’ Superannuation Act 1922;

“ The Act of 1933 ” means the Local Government Act 1933;

“ The Holme directors ” means the directors of the Holme reservoirs who were incorporated by the Holme Reservoirs Act 1853;

“ The Act of 1837 ” and “ the Act of 1853 ” mean respectively the Holme Reservoirs Act 1837 and the Holme Reservoirs Act 1853;

PART I.
—*cont.*

“ The Holme Styes reservoir ” means the reservoir and embankment across the stream rivulet or brook called Ribbleden otherwise Rivleden rivulet or brook near to and above Holme Styes mill which was authorised by the Act of 1837 together with any lands works plant and apparatus belonging to the Holme directors and adjacent to that reservoir and any rights of way enjoyed in connection therewith ;

“The Holme reservoirs” means the Bilberry reservoir the Holme Styes reservoir and the Boshaw Whams reservoir;

“ The date of transfer ” means the first day of October nineteen hundred and thirty-seven or the day immediately succeeding the appointed day whichever be the later;

“ The millowners ” means the occupiers of the several mills factories works or falls of water now situate or hereafter to be erected on across or near to any of the rivers brooks or streams flowing from the Holme reservoirs or the Digley reservoir between the respective sites of those reservoirs and the weir on the river

Calder at or near Sands Mill Earlsheaton who for the time being use or are entitled to use any water flowing in or derived from any such rivers brooks or streams for any purposes of or in connection with any such mills factories or works or the industries carried on thereat or thereby respectively;

A.D. 1937.

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PART I.
—cont.

- “ Millowner ” means any one of the millowners;
- “ The millowners committee ” means the committee of the millowners appointed under the provisions of the section of this Act of which the marginal note is “ As to millowners committee ” and as constituted for the time being;
- “ Working hour ” means an hour between five o'clock in the morning and five o'clock in the afternoon on every day of the year except Saturdays Sundays Easter Monday Whit Monday Christmas Day and Boxing Day and an hour between five o'clock in the morning and twelve o'clock noon on every Saturday except when Christmas Day or Boxing Day falls on a Saturday;
- “ Non-working hour ” means an hour which is not a working hour;
- “ Telegraphic line ” has the same meaning as in the Telegraph Act 1878;
- “ The water limits ” means the limits within which the Corporation are for the time being authorised to supply water;
- “ The electricity limits ” means the limits within which the Corporation are for the time being authorised to supply electricity;
- “ The scheduled agreement ” means the agreement set forth in the First Schedule to this Act;
- “ The Lindley Mechanics Hall undertaking ” means the Lindley Mechanics Hall and the undertaking relating thereto transferred to the Corporation in pursuance of the scheduled agreement;
- “ The trustees ” means the parties of the first part to the scheduled agreement;

41 & 42 Vict.
c. 76.

A.D. 1937.

PART I.

—cont.

39 & 40 Vict.

c. c.

45 & 46 Vict.

c. cccxxvi.

53 & 54 Vict.

c. cxv.

2 Edw. 7.

c. cxxxvii.

6 Edw. 7.

c. lxxxiv.

3 & 4 Geo. 5.

c. xcv.

10 & 11

Geo. 5.

c. lxxiii.

“ The Act of 1869 ” “ the Act of 1876 ” “ the Act of 1882 ” “ the Act of 1890 ” “ the Act of 1902 ” “ the Act of 1906 ” and “ the Act of 1913 ” mean respectively the Huddersfield Water Act 1869 the Huddersfield Waterworks and Improvement Act 1876 the Huddersfield Corporation Act 1882 the Huddersfield Corporation Waterworks Act 1890 the Huddersfield Corporation Act 1902 the Huddersfield Corporation Act 1906 and the Huddersfield Corporation Act 1913;

“ The Minister ” means the Minister of Health;

“ The water undertaking ” “ the gas undertaking ” “ the electricity undertaking ” and “ the markets undertaking ” mean respectively the water gas electricity and markets undertakings of the Corporation;

“ The passenger transport undertaking ” means the undertaking of the Corporation which comprises their tramway and tramroad light railways trolley vehicles and omnibus or public service vehicles undertakings;

“ The estate undertaking ” means the undertaking authorised by the Huddersfield Corporation (Lands) Act 1920;

“ The Corporation undertakings ” means the water undertaking the gas undertaking the electricity undertaking the markets undertaking the passenger transport undertaking the estate undertaking and any other undertaking of the Corporation as from time to time existing from which revenue is derived;

“ Statutory borrowing power ” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any

mortgage bond debenture debenture stock A.D. 1937.
stock or other security authorised by or under
any Act of Parliament passed or to be passed
of any county council or municipal corporation
or other local authority as defined by section 34
of the Local Loans Act 1875 but does not
include annuities rentcharges or securities
transferable by delivery or any security of the
Corporation; 38 & 39 Vict.
c. 83.

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PART I.
—cont.

“ Authorised security ” means any mortgage stock
bond or other security which the Corporation
are for the time being authorised to grant
create or issue or upon or by means of which
the Corporation are for the time being
authorised to raise money.

PART II.

WATERWORKS.

(a) *Purchase of Holme reservoirs undertaking.*

5.—(1) The Holme reservoirs shall on the appointed day by virtue of this Act be transferred to and shall thenceforth be vested in the Corporation free from all debentures mortgages charges debts and liabilities upon or affecting the same and such transfer and vesting are in this Act referred to as “ the transfer.”

Transfer to
Corporation
of Holme
reservoirs.

(2) The consideration for the transfer shall be the payment by the Corporation to the Holme directors of such sum as shall be agreed between the Holme directors and the Corporation or as (failing agreement) shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts other than the Acquisition of Land (Assessment of Compensation) Act 1919 Provided that—

(a) The sum to be so paid shall be determined by a single arbitrator to be agreed upon between the parties or failing agreement by a barrister to be appointed by the Chairman of the Bar Council on the application of either party after notice in writing to the other of them; and

A.D. 1937.

PART II.
—cont.

(b) In determining the said sum the arbitrator shall take into account that any purchaser of the Holme reservoirs would be under obligation to maintain the reservoirs and would be required to discharge water from the reservoirs as full compensation for taking and appropriating the waters impounded in the reservoirs.

(3) The Holme directors and the Corporation may enter into agreements prior to the appointed day for and with reference to the transfer by those directors to the Corporation of the Holme reservoirs or any of them and any agreement so entered into before the passing of this Act shall be deemed to have been entered into in pursuance of the provisions thereof.

Exercise
of powers
until
appointed
day.

6. Until the appointed day the Holme directors shall maintain and carry on the Holme reservoirs as heretofore in the ordinary course of business but the Holme directors shall not without the previous consent of the Corporation under the hand of the town clerk make or enter into any new contract agreement liability or other obligation in respect thereof which shall extend beyond the appointed day.

Officers of
directors
to be
accountable
for books
&c.

7. All officers of the Holme directors and other persons who on the appointed day have in their possession or under their control any plans books documents papers or effects relating to the Holme reservoirs shall be liable to account for and deliver up the same (so far as they are useful or reasonably necessary for the purposes of the Corporation as owners of the Holme reservoirs) to the Corporation or to such persons as the Corporation may appoint to receive the same and shall be subject to the same consequences on refusal or neglect as if such officers and persons had been appointed by and become possessed of such plans books documents papers and effects for the Corporation.

As to
receipts and
outgoings
until
appointed
day.

8. The Holme directors shall be entitled to all rates profits and sums of money accrued due in respect of the Holme reservoirs up to the appointed day and shall discharge all liabilities and outgoings up to that day (including liabilities in respect of causes of action then existing).

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxiX.]
1 GEO. 6.] Act, 1937.

9.—(1) All debentures mortgages charges debts and liabilities upon or affecting the Holme reservoirs or due from or payable by the Holme directors which at the appointed day shall remain undischarged unpaid or unsatisfied shall (so far as the assets of the Holme directors will admit) be discharged paid or satisfied by the Holme directors and if at the appointed day any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the Holme directors the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the Holme directors as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not been passed.

A.D. 1937.

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PART II.

—cont.
Liabilities
to be
defrayed by
directors.

(2) Nothing in this section shall apply to any arbitration pending at the appointed day under the section of this Act of which the marginal note is "Transfer to Corporation of Holme reservoirs."

10.—(1) The persons holding office at the passing of this Act as directors of the Holme reservoirs namely George Frederick Roberts Maurice Barber Thomas Brooke Edward Matthew Moorhouse Butterworth Basil Vickerman Priestley Leslie Roberts Richard Leslie Robinson and Arthur Henry Starkey or (subject as hereinafter provided) their survivors shall after the passing of this Act continue without formal re-election to be the directors of the Holme reservoirs for the purposes of this Act and the Act of 1853 as amended by this Act.

Holme
directors
to continue
in office.

(2) If at any time before the affairs of the Holme directors have been wound up in accordance with the next succeeding section of this Act the number of persons holding office as directors of the Holme reservoirs be reduced by death resignation or otherwise below five the remaining persons so holding that office shall forthwith appoint another suitable person of full age to be an additional director so that until the affairs of the Holme directors have been so wound up the number of persons holding office as directors of the Holme reservoirs shall not be less than five.

PART II.
—*cont.*

(4) The receipt in writing of any three of the persons for the time being holding office as directors of the Holme reservoirs for any money paid to them by the Corporation shall effectually discharge the Corporation from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication and non-application thereof or of any part thereof and if from any cause the Corporation are unable to obtain any such receipt they may pay the money into or deposit the money with the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt for the money shall be given to the Corporation by the cashier of the said bank which shall have the same effect as the receipt of three of the persons for the time being holding office as directors of the Holme reservoirs.

11.—(1) So soon as conveniently may be after the appointed day the Holme directors shall so far as practicable collect and recover all sums due to them at the appointed day as rates or arrears of rates or otherwise and shall realise all other assets belonging to them and shall distribute all sums so collected and recovered or received and any sum paid to them by the Corporation pursuant to the section of this Act of which the marginal note is “Transfer to Corporation of Holme reservoirs” in accordance with the provisions of the next succeeding section of this Act.

14

12.—(1) All sums of money in the hands of the Holme directors at the appointed day and any sum paid to the Holme directors by the Corporation pursuant to the section of this Act of which the marginal note is “Transfer to Corporation of Holme reservoirs” and all other sums of money received by the Holme directors after the appointed day whether in respect of rates or arrears of rates or from the realisation of assets or otherwise howsoever shall (so far as the same permit) be applied in payment of the expenses costs and sums mentioned in the following classes of payments and in the following order of precedence :—

A.D. 1937.

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 PART II.

—cont.

Distribution
 of assets of
 Holme
 directors.

First the current and ordinary yearly expenses of the Holme directors pending the winding up of their affairs;

Secondly the costs incurred in connection with this Act;

Thirdly the costs of and incidental to the arbitration proceedings (if any) under the said section of this Act so far as the same are payable by the Holme directors;

Fourthly the costs of winding up the affairs of the Holme directors;

Fifthly the sums due in respect of all other debts and liabilities properly payable by the Holme directors other than any sums due as principal or interest on the 1837 mortgages or the 1853 mortgages;

Sixthly the sums due as principal on the 1853 mortgages but deducting in the case of each of the 1853 mortgages from the sum so due thereon such sum as bears to the aggregate amount of the costs mentioned in paragraphs Secondly and Thirdly above the same proportion as the amount due as principal on such mortgage bears to the aggregate amount of the sums due as principal on the 1837 mortgages and the 1853 mortgages combined;

Seventhly the sum due as principal on the 1837 mortgages but deducting in the case of each of the 1837 mortgages from the sum so due

A.D. 1937.

PART II.
—cont.

thereon such sum as bears to the aggregate amount of the costs mentioned in paragraphs Secondly and Thirdly above the same proportion as the amount due as principal on such mortgage bears to the aggregate amount of the sums due as principal on the 1837 mortgages and the 1853 mortgages combined;

Eighthly the sums due as interest on the 1853 mortgages; and

Lastly the sums due as interest on the 1837 mortgages.

(2) If the total of the sums of money to be applied by the Holme directors in accordance with the provisions of the last preceding subsection shall be sufficient to enable the directors to discharge in full the expenses costs or sums falling within some but not all of the classes of payments mentioned in that subsection and to leave a balance applicable to the payment of the expenses costs or sums falling within the next succeeding class of payments such balance shall be distributed by the Holme directors amongst the persons to whom the payments in that class should be made in proportion to the sums due to those persons respectively.

(3) (a) Where the Holme directors are for six months after the passing of this Act unable after diligent inquiry to ascertain the person to whom any money ought to be paid under this section or who can give an effectual receipt for any such payment the Holme directors may pay such money into the High Court under any Act for the time being in force for the relief of trustees. Every such payment shall effectually discharge the Holme directors from all further liability with respect to the money so paid and for the purposes of this Act such money shall be deemed to be paid to the person absolutely entitled thereto and any person afterwards showing to the court that he is entitled to such money may obtain payment of the money accordingly.

(b) If any money is payable by the Holme directors under this section to any person who is a minor the receipt of his guardian shall be a sufficient discharge to the Holme directors.

(4) In this section—

A.D. 1937.

“the 1853 mortgages” means the mortgages granted by the Holme directors pursuant to section XXXII of the Act of 1853; and

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PART II.
—cont.

“the 1837 mortgages” means the mortgages granted pursuant to the Act of 1837 and includes the mortgages granted pursuant to section XXX of the Act of 1853 to the persons therein referred to as “the subscribers.”

13.—(1) As from the appointed day the Act of 1837 (so far as the same is not already repealed) shall be and the same is hereby repealed and the provisions of the Act of 1853 which are hereinafter in this section mentioned shall be and the same are hereby repealed. The provisions of the Act of 1853 which are hereinbefore referred to are—

As to
repeal of
Holme
reservoir
Acts.

- (a) Section XV;
- (b) Sections XIX to XXVI inclusive;
- (c) Sections XXXII to XLII inclusive;
- (d) Sections XLV to XLVII inclusive;
- (e) Sections XLIX to LIII inclusive;
- (f) Sections LVIII to LXII inclusive;
- (g) Sections LXIV to LXVI inclusive.

(2) So soon as the Minister is satisfied that the provisions of the section of this Act of which the marginal note is “Dissolution of Holme directors” have been carried into effect he shall certify accordingly and as from the date of such certificate so much of the Act of 1853 as is not repealed by subsection (1) of this section shall be and the same is hereby repealed.

(b) *Lands.*

14. Subject to the provisions of this Act the Corporation may enter upon take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference which they may require for the purposes of the waterworks authorised by this Act for the protection of those works and other waterworks acquired by the Corporation under the provisions of this Act and for other the purposes of the water undertaking:

Power to
take lands.

A.D. 1937. Provided that nothing in this Act shall authorise
the Corporation—

PART II.
—cont.

9 Geo. 4.
c. x.

(a) to acquire compulsorily the existing rights of any person to cut and take away peat or turf from the lands in the urban district of Holmfirth which were allotted and awarded unto the constable of the constabulary of Holme for the purposes therein mentioned by an Act passed in the ninth year of the reign of His late Majesty King George the Fourth intituled “ An Act for enclosing lands within the “ Graveship of Holme in the several parishes “ of Kirkburton and Almondbury in the West “ Riding of the County of York ” which said lands are numbered 1 (a) 17 (a) and 352 (a) on the deposited plans; or

(b) to take or appropriate the waters of the Hart Hill Springs and Round Hill Flat.

Acquisition
of ease-
ments.

15.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the waterworks authorised by this Act (including works and conveniences authorised by subsection (2) of the section of this Act of which the marginal note is “ Power to make waterworks ”) acquire such easements or rights only in such lands as they may require for such purposes (including the making enlarging renewing maintaining repairing inspecting cleansing managing using working and obtaining access to such waterworks) and may give notice to treat in respect of such easements or rights describing the nature thereof and the rights which the Corporation require for or incidental to the said purposes and the restrictions subject to which the owners and occupiers may use the lands and the provisions of the Lands Clauses Acts and of this Act shall apply to and in respect of the acquisition of such easements or rights as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Corporation have acquired easements or rights only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but unless otherwise agreed the owners or occupiers for the time being shall

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxiix.]
1 GEO. 6.] *Act, 1937.*

subject to such easements or rights and any other restrictions imposed upon the owners and occupiers have the same rights to use and cultivate the said lands at all times as if this Act had not been passed.

A.D. 1937.
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PART II.
—cont.

16. The powers granted by this Act for the compulsory purchase of lands for the purposes of this Act shall cease on the thirty-first day of December nineteen hundred and forty.

Period for compulsory purchase of lands.

17.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished if the Corporation shall by resolution so determine and give notice in writing of such their resolution to the owner of any right of way referred to therein.

Extinction of private rights of way.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights extinguished under the provisions of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

18. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the twentieth day of November nineteen hundred and thirty-six if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in case of recently acquired interest.

19. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous

Power to enter upon property for survey and valuation.

A.D. 1937. notice enter upon and into the lands houses and
— buildings authorised by this Act to be taken and used
PART II. or any of them for the purpose of surveying and valuing
—cont. the said lands houses and buildings without being
deemed trespassers and without being subject or liable
to any fine penalty or punishment on account of entering
or continuing upon any part of the said lands houses
and buildings.

Further
powers of
entry.

20. At any time after notice to treat has been
served for any land which the Corporation are by this
Act authorised to purchase compulsorily the Corpora-
tion may after giving to the owner and occupier of the
land not less than fourteen days' notice enter on and
take possession of the land or such part thereof as is
specified in the notice without previous consent or com-
pliance with sections 84 to 90 of the Lands Clauses
Consolidation Act 1845 but subject to the payment
of the like compensation for the land of which possession
is taken and interest on the compensation awarded
as would have been payable if those provisions had
been complied with.

Compensa-
tion may be
in land &c.

21. The Corporation when they are required by
any enactment to make compensation to any person
interested in any lands may by agreement with such
person make such compensation wholly or partly in works
land or money but in the case of land for the alienation
of which the consent of any Government department
is required only with such consent.

Power to
reinstate
owners of
property.

22. The Corporation may enter into and carry
into effect agreements and arrangements with the
owners of or other persons interested in any lands
or buildings which may be acquired by the Corporation
under the provisions of any general or local enactment
from time to time in force with respect to the reinstate-
ment of any such owners or other persons and with
respect to the exchange of lands for that purpose and
the Corporation may pay or receive money for equality
of exchange.

Reserva-
tion of
easements
&c.

23. The Corporation on selling any lands may
reserve to themselves all or any part of the water
rights or other rights or easements belonging thereto
and may make the sale subject to such reservations

accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

A.D. 1937.

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PART II.
—cont.

(c) *Works.*

24.—(1) Subject to the provisions of this Act the Corporation may make and maintain and from time to time alter renew and reconstruct in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the waterworks hereinafter described.

Power to
make
waterworks.

The said waterworks will be situate in the west riding of the county of York and are—

Work No. 1 A reservoir (to be called “ the Digley reservoir ”) to be situate in the urban districts of Holme and Holmfirth and to be formed by means of an embankment across the Digley brook ;

Work No. 2 A new road to be situate in the said urban districts of Holme and Holmfirth commencing by a junction with Fieldhead Lane and terminating by a junction with Work No. 3 next hereinafter described ;

Work No. 3 A diversion of Digley Royd Lane and Bank Top Lane to be situate in the said urban district of Holmfirth commencing at a point in Digley Royd Lane one hundred and ten yards or thereabouts south of its junction with Gibriding Lane and terminating at a point in Bank Top Lane seventy-three yards or thereabouts south-east of its junction with Dark Lane ;

Work No. 4 A diversion of Hoowood Lane and Gibriding Lane to be situate in the said urban district of Holmfirth commencing at a point in Hoowood Lane seventy-two yards or thereabouts west of its junction with Dick Lane and terminating in Gibriding Lane at a point one hundred and three yards or thereabouts east of that junction ;

PART II.
—cont.

Work No. 7 A filter house with pressure filters and other works to be situate in the urban district of Holmfirth in enclosures numbered 2383 and 2385 on the 1/2500 Ordnance map of that urban district (edition of 1931 sheet CCLXXII.6);

Work No. 8 An aqueduct consisting of a line or lines of pipes to be situate in the said urban district of Holmfirth the urban district of Honley and the borough commencing in Work No. 7 and terminating in Work No. 9 next hereinafter described:

Work No. 9 A service reservoir (to be called "the Newsome service reservoir") to be situate in the borough in enclosures numbered 735 737 and 738 on the 1/2500 Ordnance map (edition of 1932) of the borough;

Work No. 10 An aqueduct consisting of a line or lines of pipes to be situate in the borough commencing at the junction of St. John's Avenue and Newsome Road South and terminating at or near to the junction of Kings Mill Lane and Wakefield Road;

Work No. 11 A booster station to be situate in the said urban district of Holmfirth and in enclosure numbered 326 on the 1/2500 Ordnance map (edition of 1932) of that urban district.

22

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxix.]
1 GEO. 6.] *Act, 1937.*

Provided that nothing in this subsection shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

A.D. 1937.

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PART II.
—cont.

25. In the construction of the waterworks authorised by this Act the Corporation may deviate to any extent not exceeding the limits of deviation shown on the deposited plans (and where on any street or road no such limits are shown the boundaries of such street or road shall be deemed to be such limits) and they may also deviate from the levels shown on the deposited sections to any extent not exceeding six feet upwards and to any extent downwards:

Limits of
deviation.

Provided that—

- (a) except for the purpose of crossing over a river stream canal dyke watercourse or railway; and
- (b) except for the purpose of crossing over any lands in cases where the consent of the owners of and of all other persons interested in such lands is obtained to the aqueducts or any part or parts thereof being raised above the surface of the ground;

no part of the aqueducts (Works Nos. 6 8 and 10) authorised by this Act shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

26. For the protection of the London Midland and Scottish Railway Company (hereinafter referred to as “the company”) the following provisions shall unless otherwise agreed in writing between the company and the Corporation apply and have effect in relation to the exercise of the powers of the foregoing provisions of this Part of this Act (that is to say):—

For protec-
tion of
London
Midland and
Scottish
Railway
Company.

- (1) In constructing laying down and executing and also (except in cases of emergency) in effecting the repairs or renewals of Work No. 8 where the same passes under the railway of the company the same shall be done by and in all things at the expense of the Corporation except as in this section is otherwise provided and under the superintendence (if the same be given) and

PART II.
—*cont.*

Provided that if the engineer shall not signify his approval or disapproval of such plans sections and particulars within fourteen days after they shall have been submitted to him he shall be deemed to have approved thereof:

(3) If by reason of the construction or maintenance of the said work it shall become necessary to construct any temporary works or to reconstruct alter strengthen underpin or in anywise interfere with the structure of any bridge

embankment or other work of the company such construction reconstruction alteration strengthening or underpinning shall be carried out by the company after seven days' notice of their intention so to do to the Corporation at such times and in such manner as they think expedient or necessary and the reasonable cost thereof shall be borne and paid by the Corporation :

A.D. 1937.

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PART II.
—cont.

- (4) The Corporation shall not acquire compulsorily any railway or work of the company but the Corporation may acquire and the company on being required so to do by the Corporation shall sell to the Corporation in accordance with the provisions of this Act such rights or easements as may be necessary to enable the Corporation to construct and maintain the said work and any works connected therewith and ancillary thereto under or across the railway of the company and the Corporation shall pay to the company for any right or easement which they may so require the company to sell such sum as may be agreed upon or (failing agreement) as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement :
- (5) The Corporation shall bear and on demand pay to the company the reasonable expense of the employment by them during the construction and maintenance of the said work under or across or in any way affecting the railway of the company of such inspectors or watchmen (if any) to be appointed by the company as may be reasonably necessary for watching and protecting their railway during the execution and maintenance of the said work and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person or persons in the employ of the Corporation or their contractors :

A.D. 1937.

PART II.
—cont.

(6) For the purposes of subsection (5) of this section any costs or expenses incurred by the company shall include compensation payable to any workmen who may be injured or killed whilst employed by the company in and about the works or operations respectively mentioned in the said subsection or to the legal representatives or dependants of such workmen :

(7) Except as in this section otherwise expressly provided any difference arising between the Corporation and the company or the engineer respecting any of the matters referred to in this section shall be determined by arbitration.

For pro-
tection of
county
council.

27. For the protection of the county council the following provisions shall unless otherwise agreed in writing between the county council and the Corporation have effect in relation to the construction in the west riding of Yorkshire of the works authorised by the section of this Act of which the marginal note is " Power to make waterworks " or of subsection (2) of the section of this Act of which the marginal note is " Period for completion of waterworks " (that is to say) :—

(1) The said works where the same are to be constructed or laid in or along any county road shall so far as is reasonably practicable be constructed and laid in such position and at such level as the county council shall by writing under the hand of their surveyor reasonably direct :

(2) The said works where the same are to be constructed or laid in along or across or in any way affecting any such county road shall be constructed or laid at the expense of the Corporation under the superintendence and to the reasonable satisfaction of the said surveyor and (except in the case of emergency) in accordance with plans and sections to be submitted to and reasonably approved by him in writing before the commencement of any such work Provided that if the said surveyor shall not within twenty-one days after the said plans and sections shall have been

submitted so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof and that if within the said period he shall have expressed his disapproval of the said plans and sections or made any requirement with respect thereto with which the Corporation are unwilling to comply a difference shall be deemed to have arisen between him and the Corporation which shall be determined by arbitration :

A.D. 1937.

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PART II.
—cont.

- (3) (a) The Corporation shall not open or break up at any one time a greater continuous length than two hundred yards of any such county road nor more than one hundred yards at any one place where there is only sufficient room for one vehicle to pass during the progress of the work or leave an interval of less than one hundred and fifty yards between any two places at which they open or break up any such county road at the same time ;

(b) Notwithstanding anything contained in this Act all such works as aforesaid shall be so executed as not to stop or unreasonably to interfere with the traffic on any such road and all such work shall be proceeded with and completed with all reasonable dispatch ;

(c) The filling in of the ground and the reinstatement of any such road in pursuance of the provisions of section 32 of the Waterworks Clauses Act 1847 shall be carried out in accordance with a specification to be reasonably approved by the county surveyor regard being had to the character and formation of the road affected and such specification may provide for temporary as well as permanent reinstatement :

- (4) If any road repairable by the county council is broken up by the Corporation for the purposes of the works hereinbefore referred to or any culvert drain pipe or other property of the county council is damaged by the Corporation the Corporation shall repair such road culvert drain pipe or other property to the reasonable

PART II.
—*cont.*

(5) The Corporation shall to the reasonable satisfaction of the county surveyor keep the portion of all roads repairable by the county council which shall be broken up by the Corporation for the purpose of constructing laying renewing or repairing any works by this Act authorised in good repair for six months after replacing and making good the same and if at any time during the said period the Corporation shall neglect to keep any such portion of road in good repair the county surveyor on giving seven days' previous notice in writing to the Corporation may carry out any repairs and the county council shall be entitled to recover the reasonable costs incurred by them in so doing from the Corporation :

20 & 21
Geo. 5, c. 44.

28

be deemed to have approved thereof and that if within the said period the county council shall have expressed their disapproval of such plan and section or made any requirement with respect thereto with which the Corporation are unwilling to comply a difference shall be deemed to have arisen between them and the Corporation which shall be determined by arbitration :

A.D. 1937.

PART II.
—cont.

- (7) If any difference shall arise between the Corporation and the county council touching this section or anything to be done or not to be done thereunder such difference shall be determined by arbitration.

28. For the protection of the mayor aldermen and burgesses of the borough of Batley (in this section referred to as "the Batley Corporation") the following provisions shall unless otherwise agreed in writing between the Corporation and the Batley Corporation apply and have effect with reference to the exercise by the Corporation of the powers of this Part of this Act (that is to say) :—

For protection
of Batley
Corporation.

- (1) Not less than fourteen days before commencing the execution of any of the works authorised by this Part of this Act within a distance of three yards from any aqueduct conduit water main or pipe or apparatus connected therewith respectively belonging to the Batley Corporation (all of which are in this section together referred to as "apparatus") the Corporation shall furnish to the Batley Corporation plans sections and particulars of such work :
- (2) If the Batley Corporation shall be of opinion that the execution of any work shown on the plans and sections furnished to them by the Corporation as aforesaid will injuriously affect the stability of any apparatus situate within a distance of three feet from such work the Batley Corporation may at any time within fourteen days after the Corporation shall have furnished the plans sections and particulars referred to in subsection (1) of this section by notice in writing require the Corporation to

A.D. 1937.

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PART II.
—cont.

raise lower or otherwise alter the position of or to support such apparatus or to substitute temporarily or permanently other works or apparatus or to execute works for the protection of such apparatus in such manner as may be reasonably necessary and if the Corporation shall not within fourteen days after the receipt of any such notice from the Batley Corporation intimate to them in writing their objection thereto the Corporation shall be deemed to have assented to the requirements of the notice and shall in executing the said work at their own expense comply with such requirements but if within such period of fourteen days as last aforesaid the Corporation shall in writing intimate to the Batley Corporation any objection to the said requirements a difference shall be deemed to have arisen between them with respect thereto :

- (3) All such raising lowering alteration support or substitution or other protective works shall be done and executed by and at the expense of the Corporation but to the reasonable satisfaction and under the superintendence (if given) of the engineer or other duly authorised officer of the Batley Corporation and the Corporation shall give to the Batley Corporation at least fourteen days' notice in writing of the date on which any such operations or works will be commenced Provided that if the Batley Corporation by notice in writing to the Corporation within seven days after the receipt by them of notice of the intended commencement by the Corporation of any such operations or works so require the Batley Corporation may by their own engineer and workmen do and execute any such raising lowering alteration support or substitution of the apparatus or any such protective works as may be agreed or determined as aforesaid and the Corporation shall on completion thereof pay to the Batley Corporation the expenses reasonably incurred by them in the doing or execution thereof :

A.D. 1937.

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PART II.
—cont.

- (4) If the Batley Corporation shall reasonably incur any additional expense in the maintenance renewal or reconstruction of any apparatus by reason or in consequence of the execution of any of the works authorised by this Part of this Act the Corporation shall repay to the Batley Corporation the amount of such additional expense :
- (5) If any interruption in the supply of water through any apparatus shall be in any way occasioned by reason of the execution of any of the works of the Corporation the Corporation shall make good to the Batley Corporation any loss damage or expense which may be occasioned to them by reason or in consequence of such interruption and shall indemnify the Batley Corporation from and against any claim or demand in respect thereof :
- (6) The Corporation shall not lay any of the works authorised by this Part of this Act at a less distance than one foot six inches from any apparatus of the Batley Corporation except where it may be necessary for such works to be laid across such apparatus in which case such work shall be so laid as to leave between the same and the apparatus of the Corporation a space of at least one foot and shall be self supporting for a distance of at least three feet on either side of the point of crossing :
- (7) The works authorised by this Part of this Act shall so far as reasonably practicable be executed so as not to prevent or render less convenient access by the Batley Corporation to their apparatus for the purpose of repair alteration or renewal thereof :
- (8) If any difference shall arise between the Corporation and the Batley Corporation under this section such difference shall be determined by arbitration.

29.—(1) If the waterworks authorised by this Act and delineated on the deposited plans are not completed by the thirty-first day of December nineteen hundred and forty-seven then (subject to the provisions

Period for completion of water-works.

A.D. 1937. of subsection (2) of this section) the powers granted
— by this Act for constructing the same or otherwise
PART II. in relation thereto shall cease except as to such of
—cont. them or so much thereof respectively as shall then
be completed.

(2) Provided that the Corporation may extend
enlarge alter reconstruct renew or remove any of
their works and plant and lay down additional lines
of pipes as and when occasion may require.

Power to
stop up
roads and
footpath.

30.—(1) Subject to the provisions of this Act the
Corporation may stop up—

- (a) Fieldhead Lane and Dark Lane from Shaw
Bank to Digley Royd;
- (b) Lumbank Lane and Dick Lane as far as Clough
Top;
- (c) So much of Digley Royd Lane and Bank Top
Lane as lies between the commencement and
termination of Work No. 3;
- (d) So much of Gibriding Lane and Hoowood
Lane as lies between the commencement and
termination of Work No. 4;
- (e) So much of the footpath leading from Holme
to Lumbank Lane as lies north of the point
at which the new footpath first referred to in
paragraph (iv) of the proviso to this sub-
section intercepts the said footpath from Holme
to Lumbank Lane :

Provided that the Corporation shall not stop up—

- (i) That portion of Fieldhead Lane which lies
between Shaw Bank and the northern end of
Digley Bridge and the roads (b) hereinbefore
described until Work No. 2 authorised by this
Act is open for public use;
- (ii) The portion of the roads (c) hereinbefore
described until Work No. 3 authorised by
this Act is completed to the satisfaction
of the road authority and is open for public
use;
- (iii) The portion of the roads (d) hereinbefore
described until Work No. 4 authorised by
this Act is completed to the like satisfaction
and is open for public use;

- (iv) The portion of the footpath (e) hereinbefore described until they shall have constructed to the like satisfaction and opened for public use a new footpath commencing by a junction with the said footpath (e) and terminating by a junction with Further End Lane and a new footpath commencing at or near to the junction of Further End Lane and Lumbank Lane crossing the embankment of the Bilberry reservoir and terminating by a junction with Hoowood Lane;

A.D. 1937.

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PART II.
—cont.

or in case of difference between the Corporation and the road authority as to the completion of Work No. 3 or Work No. 4 or the construction of the two new footpaths referred to in paragraph (iv) of the proviso to this subsection (as the case may be) until two justices shall have certified that the same have respectively been completed or constructed to their satisfaction and are open for public use. Provided also that before applying to the justices for their certificate the Corporation shall give to the road authority not less than seven days' notice in writing of their intention to apply for the same.

(2) As from the date on which Work No. 2 is open for public use and as from the completion of Work No. 3 and Work No. 4 authorised by this Act respectively to the satisfaction of the road authority or as from the respective dates of the said certificates (as the case may be) and as from the completion of the two new footpaths referred to in paragraph (iv) of the proviso to subsection (1) of this section to the satisfaction of the Holmfirth Council all rights of way over or along the existing portions of roads or footpath as will be rendered unnecessary by the said works and footpaths respectively shall be extinguished and the Corporation may subject to the provisions of the Waterworks Clauses Act 1847 with respect to mines appropriate and use for the purposes of the water undertaking the site of the portions of roads and footpath stopped up as far as the same is bounded on both sides by lands of the Corporation and the site of such portions of roads and footpath shall be vested in them.

(3) Work No. 2 shall be constructed of a width of not less than eighteen feet (of which not less than

A.D. 1937. three feet shall be constructed as a footway) and shall
— be maintained by and at the cost of the Corporation to
PART II. the reasonable satisfaction of the Holmfirth Council.
—cont.

(4) The new roads (Works Nos. 3 and 4) and the two new footpaths referred to in paragraph (iv) of the proviso to subsection (1) of this section shall be constructed of not less than the same width and of the same material as the roads or footpaths for which they are to be substituted.

(5) Work No. 3 and Work No. 4 authorised by this Act and the two new footpaths hereinbefore mentioned shall after they are completed be maintained by and at the cost of the Corporation until the expiration of one year after the completion of the Digley reservoir and upon the expiration of that period shall be repairable by the authority liable for the repair of the portions of the existing roads and footpath proposed to be stopped up as aforesaid.

Temporary
stoppage
of streets.

31.—(1) The Corporation during and for the purpose of the execution of the works authorised by this Act may temporarily stop up and divert and interfere with any street and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any house in the street from passing along and using the same.

(2) The Corporation shall provide reasonable access for foot passengers bona fide going to or from any such house.

(3) The Corporation shall not exercise the powers of this section so as to prevent reasonable access for foot passengers and vehicular traffic bona fide going to or from any railway station or depot of any railway company.

(4) The powers of this section shall not be exercised in reference to a road in the urban district of Holmfirth (other than a county road) without the consent of the Holmfirth Council but such consent shall not be unreasonably withheld and any question whether any such consent is unreasonably withheld shall be determined by arbitration.

32.—(1) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any street or road of the lines of pipes authorised by this Act and of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Corporation may and which they are hereby authorised to construct lay down or erect for the purposes of the water undertaking.

(2) The powers of this section shall not be exercised with respect to any street or road belonging to or maintainable by a railway company except with the consent in writing of the company but such consent shall not be unreasonably withheld and shall be deemed to have been given if such company shall fail to signify their consent or dissent within twenty-one days after it shall have been applied for Any question as to whether or not any such consent has been unreasonably withheld shall be determined by arbitration.

33. Any electrical works or telephone or telegraph posts wires conductors or apparatus made laid down erected or maintained under the provisions of this Act shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 and shall be so constructed maintained and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line or with such wireless communications as may be used by the Royal Air Force or by an aerodrome licensed pursuant to an order made under the Air Navigation Acts 1920 and 1936.

34.—(1) Subject to the provisions of this Act the Corporation shall—

- (a) As from the appointed day and until the completion of the Digley reservoir maintain the embankment of the Bilberry reservoir in an efficient condition and discharge water from that reservoir in accordance with such reasonable directions in writing as they may from time to time receive from the millowners committee;

A.D. 1937.

PART II.

—cont.

Application
of Water-
works
Clauses Act
1847.

For protec-
tion of
Postmaster-
General.

32 & 33 Vict.
c. 73.

10 & 11 Geo. 5.
c. 80.
26 Geo. 5. &
1 Edw. 8. c. 44.

As to main-
tenance of
existing
reservoirs.

A.D. 1937.

PART II.
—cont.

(b) As from the appointed day and until the date of transfer maintain the existing embankment of the Holme Styres reservoir in as good a condition as at the date of this Act and discharge water from that reservoir in accordance with such reasonable directions in writing as they may from time to time receive from the mill-owners committee;

(c) As from the appointed day maintain the existing embankment of the Boshaw Whams reservoir in as good a condition as at the date of this Act and discharge water from that reservoir in accordance with such reasonable directions in writing as they may from time to time receive from the millowners committee :

Provided that the Corporation may if they think fit from time to time improve any of the said embankments.

(2) Any question as to whether any directions of the millowners committee under this section are reasonable shall be determined by an engineer to be agreed between the Corporation and the millowners committee or failing agreement appointed by the President of the Institution of Civil Engineers.

(3) From the appointed day until the first appointment of the millowners committee under this Act the foregoing provisions of this section shall be read and construed as if all references to the millowners committee were references to the Holme directors.

Works to
form part
of water
under-
taking.

35. Subject to the provisions of this Act the works to be constructed and the reservoirs and lands to be acquired by and transferred to the Corporation under the authority of this Act or appropriated for the said works shall for all purposes be deemed to be part of the water undertaking.

Power to
Corporation
to take
waters.

36.—(1) Subject to the provisions of this Act the Corporation may for the purposes of the water undertaking take collect use and appropriate the waters of the Digley Brook and of all streams that flow into that brook above the embankment of the Digley reservoir and all such other springs streams and waters as flow naturally to and as can be intercepted by that reservoir.

(2) Unless authorised by Act of Parliament the Corporation shall not use or appropriate for the purposes of the water undertaking any springs streams or waters which are or can be intercepted by the embankments of the Holme Styes reservoir and Boshaw Whams reservoir respectively but nothing in this section shall prejudice or affect the provisions of the section of this Act of which the marginal note is "As to sale of Holme Styes reservoir to Holmfirth Council."

A.D. 1937.

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PART II.
—cont.

37.—(1) In this section—

"The committee" means the committee from time to time appointed under this section;

"The clerk" means the person for the time being holding office as clerk or secretary to the committee.

As to mill
owners
committee.

(2) For the purposes of this Act there shall be appointed annually a committee of seven persons of whom one shall be a millowner on the river Calder or the duly authorised representative of such a millowner and the other six shall be millowners on the rivers brooks or streams above the junction of the river Colne with the river Calder or duly authorised representatives of such millowners respectively.

(3) The committee to be appointed at the annual meeting to be held as hereinafter provided in the month of January nineteen hundred and thirty-eight and their successors shall be a body corporate with perpetual succession and a common seal by name of "the Holme Colne and Calder Millowners Committee" and by that name may sue and be sued.

(4) (a) The committee shall be appointed at a meeting of the millowners to be held at some convenient place in the borough in the month of January in every year. A meeting convened under this paragraph shall be called "an annual meeting."

(b) The first annual meeting shall be convened in the month of January nineteen hundred and thirty-eight by the mayor and every subsequent annual meeting shall be convened by the clerk.

(c) Every annual meeting shall be convened by not less than fourteen days' previous notice in writing sent or delivered to each millowner and specifying the date

A.D. 1937.

PART II.

—*cont.*

(5) (a) The clerk may at any time and shall if so requested in writing by not less than five millowners being occupiers of separate mills factories works or falls of water convene a meeting of the millowners (other than an annual meeting) at some convenient place in the borough.

A meeting convened under this paragraph shall be called "an extraordinary meeting."

(b) Every extraordinary meeting shall except in case of emergency be convened by not less than seven days' previous notice in writing sent or delivered to each millowner and specifying the date time and place of the meeting and the business to be transacted thereat.

(c) The millowners present at an extraordinary meeting may discharge any member or members of the committee and appoint another member or members in his or their place or places Provided that if any member so discharged is a millowner on the river Calder or the duly authorised representative of such a millowner the member appointed in his place shall be another millowner on the river Calder or the duly authorised representative of such a millowner.

(6) The quorum necessary to constitute the first annual meeting of the millowners shall be five mill-owners or their duly authorised representatives and the quorum necessary to constitute any other meeting of the millowners (whether annual or extraordinary) shall be fixed by a resolution passed at the first annual meeting but the quorum may be varied from time to time by a resolution passed at any subsequent meeting (whether annual or extraordinary).

(7) At every meeting of the millowners (whether annual or extraordinary) any millowner may be represented by any person duly appointed in writing by such millowner to attend the meeting:

(8) (a) At every meeting of the millowners (whether annual or extraordinary) one vote may be given in respect of each mill factory work or fall of water represented at the meeting Where several joint

occupiers of a mill factory work or fall of water are present only one of them shall vote on behalf of all of them and if they do not agree as to their vote it shall not be received. Provided that no vote shall be received in respect of a work or fall of water used for the purposes of or in connection with a mill or factory if such vote is in addition to a vote given in respect of that mill or factory.

A.D. 1937.

PART II.
—cont.

(b) Every question at any meeting of the millowners (whether annual or extraordinary) shall be determined by the majority of the votes given at the meeting and if there be an equality of votes on any question the chairman of the meeting shall have a casting vote in addition to his vote as a millowner.

(9) (a) The members of the committee appointed at any annual meeting shall subject as provided by subsection (5) (c) of this section and as hereinafter provided hold office until the close of the annual meeting in the next following year and shall then go out of office but shall be eligible for re-election.

(b) A member of the committee may resign his membership by giving not less than one month's notice in writing to the clerk of such his intention and his resignation shall take effect on the expiry of the notice or its earlier acceptance by the committee.

(c) A member of the committee shall be deemed to have vacated office if he shall cease to be a millowner or the authorised representative of a millowner.

(10) If any member of the committee shall during his year of office die or resign or vacate office the other members of the committee may co-opt another millowner or the duly authorised representative of another millowner as a member of the committee in place of the first mentioned member. The person so co-opted shall hold office until the close of the next succeeding annual meeting and shall then go out of office but shall be eligible for re-election.

(11) The committee shall have power to appoint such sub-committees and such clerk or secretary and other officers and servants as they may think fit and to regulate their proceedings and the proceedings of any sub-committee including the fixing of the quorum necessary to constitute a meeting of the committee or any sub-committee.

(3) After the completion and first filling of the Digley reservoir the Corporation shall subject to the provisions of this Act discharge or allow to flow into the Digley Brook over or through the gauge to be provided as hereinafter mentioned—

A.D. 1937.

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PART II.
—cont.

(a) a quantity of water of not less than one hundred and thirty-eight thousand two hundred and twenty-six gallons during each working hour; and

(b) a quantity of water of not less than eight thousand three hundred and eighty-three gallons during each non-working hour.

(4) (a) For the purpose of measuring and recording the quantities of water to be so discharged or allowed to flow into the Digley Brook the Corporation shall erect and so long as they continue to take water for the purposes of the water undertaking under the section of this Act of which the marginal note is "Power to Corporation to take waters" they shall maintain in a state of efficiency at a point on the Digley Brook below the Digley reservoir and not more than two hundred yards from the foot of the embankment thereof a suitable gauge with an automatic recorder.

(b) The said gauge and recorder and the records thereof shall at all reasonable times be open or available for the inspection and examination of any millowner or officer of the millowners committee and of any other person interested in the flow of the Digley Brook (including the county council the West Riding of Yorkshire Rivers Board the River Ouse (Yorks) Catchment Board and the company of proprietors of the Calder and Hebble Navigation) and every such millowner officer or person may if he so desires take copies of any such records.

39.—(1) In this section—

"the true mean rainfall" means fifty-six inches;

"annual available rainfall" means the number of inches of rainfall which is ascertained by deducting such number of inches of rainfall (in respect of the loss by evaporation and absorption) as may be determined under the provisions of this section from four-fifths of the true mean rainfall.

Ascertain-
ment of loss
of rainfall by
evaporation
and
absorption.

PART II.
—cont.

(3) If notice be given pursuant to subsection (2) of this section the Corporation shall send a copy thereof to the county council and forthwith apply to the President of the Institution of Civil Engineers for the appointment of a referee and the referee shall determine and certify the number of inches to be so deducted as aforesaid in order to ascertain the said annual available rainfall and shall state in his certificate in inches the amount of the said annual available rainfall so ascertained and shall send a copy of the certificate to the millowners committee and to the county council. Provided that if the millowners committee and the county council or either of them intimate in writing to the referee within one month from the date of the giving of the notice first referred to in this subsection that they or either of them desire to be heard by him before he makes his determination the referee shall not make his determination until after he shall have considered any representations which may within one month from the giving of such intimation be submitted to him either in writing or orally by the parties or party by whom such intimation was given.

(5) From and after the date of the said certificate the respective quantities of compensation water to be discharged or allowed to flow by the Corporation pursuant to subsection (3) of the last preceding section

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxix.]
1 GEO. 6.] *Act, 1937.*

shall be such quantities as bear to the quantities stated in that subsection the same proportions as the amount of the annual available rainfall stated in the said certificate bears to thirty decimal eight inches.

A.D. 1937.

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PART II.
—cont.

40.—(1) (a) On the date of transfer the Corporation shall sell to the Holmfirth Council and the Holmfirth Council shall purchase from the Corporation the Holme Styes reservoir together with all the rights powers duties and obligations conferred upon the Corporation by this Act in relation thereto for such price or consideration and on and subject to such terms and conditions as may be agreed upon between the Corporation and the Holmfirth Council or as failing such agreement shall be determined by arbitration.

As to sale
of Holme
Styes
reservoir to
Holmfirth
Council.

(b) Any agreement between the Holmfirth Council and the Corporation with reference to the sale and purchase of the said reservoir which may be entered into before the passing of this Act and which would have been authorised by this section if entered into after the passing of this Act shall be deemed to have been entered into in pursuance of this section.

(2) On the date of transfer the Holme Styes reservoir shall by virtue of this Act be transferred to and shall thenceforth be vested in the Holmfirth Council together with all rights powers duties and obligations conferred upon the Corporation by this Act in relation thereto including (but without prejudice to the generality of this provision) the rights powers and obligations conferred or imposed by the section of this Act of which the marginal note is "Byelaws for preventing pollution of water" so far as the same are applicable to the Holme Styes reservoir and the gathering ground thereof.

(3) As from the date of transfer the Holme Styes reservoir shall be deemed to form part of the water undertaking of the Holmfirth Council under Part IV of the Act of 1936 and the provisions of this Act so far as they relate to the Holmfirth Council and their water undertaking shall be read and construed as if the purposes and provisions of this Act were purposes and provisions of the Public Health Acts so far as the said Acts shall be applicable thereto and except so far as any of the provisions of the said Acts are expressly varied or otherwise provided for by this Act.

A.D. 1937.

PART II.
—cont.

(4) As from the date of transfer the Holmfirth Council shall—

(a) Maintain the existing embankment of the Holme Styes reservoir in as good a condition as at the date of this Act Provided that the Holmfirth Council may if they think fit from time to time improve the said embankment;

(b) Until they commence to take use and divert for the purposes of their water undertaking the waters impounded by means of the Holme Styes reservoir allow water to flow from that reservoir in accordance with such reasonable directions in writing as they may from time to time receive from the millowners committee or prior to the first appointment of the millowners committee under this Act from the Holme directors but not exceeding the quantity of thirty-one thousand seven hundred and fifty-seven gallons during each working hour.

(5) Subject to the provisions of this Act the Holmfirth Council may as from the date of transfer and for the purposes of the water undertaking of the Holmfirth Council take collect use and appropriate the waters of the river Ribble and of all streams that flow into that river above the embankment of the Holme Styes reservoir and all such other springs streams and waters as flow naturally to and as can be intercepted by that reservoir.

Compensa-
tion water
from Holme
Styes
reservoir.

41.—(1) In this section—

“ Winter months ” means the months of January February March April May June November and December of each year;

“ Summer months ” means the remaining months of each year.

(2) As from the date upon which the Holmfirth Council shall commence to take use divert and appropriate for the purposes of their water undertaking the waters impounded by means of the Holme Styes reservoir the Holmfirth Council shall discharge or allow to flow from that reservoir into the river Ribble over or through the gauge to be provided as hereinafter mentioned a quantity of water (including any water

leaking past or through the embankment or flowing over the bywash of that reservoir) of not less than thirty-one thousand seven hundred and fifty-seven gallons during each working hour until the date of completion and filling of the Digley reservoir and the discharge therefrom of water in accordance with this Act.

A.D. 1937.

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PART II.
—cont.

(3) As from such last mentioned date the Holmfirth Council shall discharge or allow to flow in manner aforesaid—

- (a) a quantity of water (including any water leaking past or through the embankment or flowing over the bywash of that reservoir) of not less than nineteen thousand two hundred and sixty-six gallons during each working hour throughout the winter months;
- (b) a quantity of water (including any water leaking past or through the embankment or flowing over the bywash of that reservoir) of not less than twenty-two thousand seven hundred and ninety-seven gallons during each working hour throughout the summer months Provided that James Watkinson and Sons Limited whose Washpit Mills are situate on the river Ribble below the embankment of the Holme Styes reservoir and their successors (occupiers for the time being of the said Mills) may at any time during the summer months by forty-eight hours' notice in writing to the Holmfirth Council require the Holmfirth Council to discharge or allow to flow in manner aforesaid an additional quantity of water of three thousand one hundred and nine gallons during each working hour on such days as may be specified in such notice and the Holmfirth Council shall discharge or allow to flow the said additional quantity of water in accordance with the requirements of such notice unless in the opinion of the Holmfirth Council by so doing the supply of water for domestic purposes to such parts of the urban districts of Holmfirth and New Mill as are or can be supplied with water from the Greave reservoir belonging to the Holmfirth Council would be prejudiced.

PART II.
—cont.

by arbitration :

six inches.

company have expended one-half of that sum.

reservoir and not more than two hundred yards from

the foot of the embankment thereof a suitable gauge with an automatic recorder for the purpose of measuring and recording the quantity of water discharged or allowed to flow from such reservoir.

A.D. 1937.

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PART II.
—cont.

(b) The said gauge and recorder and the records thereof shall at all reasonable times be open or available for the inspection and examination of any millowner or officer of the millowners committee and of any other person interested in the flow of the river Ribble (including the county council the West Riding of Yorkshire Rivers Board the River Ouse (Yorks) Catchment Board and the company of proprietors of the Calder and Hebble Navigation) and every such millowner officer or person may if he so desires take copies of any such records.

42.—(1) The respective quantities of water which the Corporation and the Holmfirth Council are required to discharge or allow to flow under the sections of this Act of which the marginal notes respectively are "Compensation water from Digley reservoir" and "Compensation water from Holme Styes reservoir" shall (subject to the provisions of this Act) be discharged or allowed to flow by the Corporation into the Digley Brook and by the Holmfirth Council into the river Ribble respectively in a regular uniform and continuous flow at the rates and in the manner provided in those sections.

For protec-
tion of
millowners.

(2) The millowners committee may at any time after their first appointment under this Act and the Holme directors may at any time before the first appointment of the millowners committee by not less than seven days' notice in writing to the Corporation or the Holmfirth Council (as the case may be)—

(a) Require that the whole or any part of the water to be discharged or allowed to flow as aforesaid into the Digley Brook or the river Ribble during working hours on any Saturday (not being a Christmas day or Boxing day) other than the water referred to in the proviso to subsection (3) of the last preceding section of this Act shall (instead of being discharged or allowed to flow on such Saturday) be discharged or allowed to flow during the working

A.D. 1937.

PART II.
—cont.

hours of such one or more of the other working days in the same week as may be specified in the notice in addition to the quantity required to be discharged or allowed to flow under the foregoing provisions of this Act during the working hours of the same day or days; and

- (b) Vary the hours of any day or days (to be specified in the notice) during which the quantities of water required to be discharged or allowed to flow during working hours under the foregoing provisions of this Act shall be so discharged or allowed to flow into the Digley Brook and the river Ribble respectively and in the event of such variation the hours during which such quantities of water so required to be discharged or allowed to flow shall be deemed to be working hours :

Provided that—

(i) Nothing in this section shall enable the millowners committee or the Holme directors (as the case may be) to require the Corporation or the Holmfirth Council to discharge or allow to flow from the Digley reservoir and the Holme Styes reservoir respectively a greater total quantity of water in any period of a week than they are respectively required to discharge or allow to flow under the sections of this Act of which the marginal notes are “ Compensation water from Digley reservoir ” and “ Compensation water from Holme Styes reservoir ” ;

(ii) The total number of hours during which the said water shall be so discharged or allowed to flow shall not be less than twelve hours on any day other than Saturday or Sunday and shall (except as provided by the foregoing paragraph (a)) not be less than seven hours on any Saturday.

- (3) If at any time the gauge or recorder to be erected by the Corporation pursuant to the section

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxxix.]
1 GEO. 6.] *Act, 1937.*

of this Act of which the marginal note is "Compensation water from Digley reservoir" or by the Holmfirth Council pursuant to the section of this Act of which the marginal note is "Compensation water from Holme Styes reservoir" is in an unfit state of repair for the purposes for which it is intended such gauge or recorder shall forthwith be put into a proper and efficient state of repair by and at the expense of the Corporation or the Holmfirth Council (as the case may be) and if the Corporation or the Holmfirth Council fail so to do within seven days after notice in writing given to them by the clerk to the millowners committee it shall be lawful for the millowners committee to cause such gauge or recorder to be put into a proper and efficient state of repair and to recover the expenses of so doing against the Corporation or the Holmfirth Council (as the case may be) in any court of competent jurisdiction Nothing in this subsection shall relieve the Corporation or the Holmfirth Council from any penalty or liability to make compensation under the next succeeding section of this Act.

A.D. 1937.

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PART II.
—cont.

43.—(1) In case of any neglect on the part of the Corporation or the Holmfirth Council (as the case may be) to provide and maintain in a state of efficiency any of the gauges and recorders which they are by this Act required to provide and maintain or in case of any neglect by or in consequence of which the quantity of water required by this Act to be discharged or allowed to flow from the Digley reservoir or the Holme Styes reservoir shall not be discharged or allowed to flow the Corporation or the Holmfirth Council (as the case may be) shall for every day on which such neglect occurs forfeit and pay to the millowners committee (who may sue for and recover the same accordingly) the sum of ten pounds and shall in addition make compensation for any loss or injury sustained by the millowners committee or any persons injuriously affected thereby the amount of such compensation in case of dispute to be determined by arbitration.

Further
provisions
as to com-
pensation
water.

(2) If any difference arises between the Corporation or the Holmfirth Council (as the case may be) and the bodies or persons authorised by this Act to inspect the said gauges and recorders or any of those bodies or persons with respect to the position design

(3) The provisions of this section and of the sections of this Act of which the marginal notes are “ Compensation water from Digley reservoir ” and “ Compensation water from Holme Styres reservoir ” shall be accepted and taken by all persons interested as full compensation for all waters which the Corporation or the Holmfirth Council (as the case may be) can divert collect impound or appropriate under this Act.

(2) In the exercise of the powers conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such powers the amount of compensation to be settled in default of agreement by arbitration.

(4) The powers of this section shall not be exercised so as to damage or injuriously to affect the railways or works of any railway company.

45.—(1) Where the water limits are bounded by or abut on any street or part of a street wholly outside those limits the Corporation may for the purpose of supplying water to the owner or occupier of any premises abutting on that street or part of a street and being within the water limits exercise with respect to such

street or part of a street outside those limits the like powers of breaking up the same for the purposes of laying maintaining inspecting repairing and renewing pipes as are exerciseable by them with respect to streets within the water limits subject nevertheless to the observance of the conditions imposed on an exercise of those powers within the said limits.

A.D. 1937.

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PART II.
—cont.

(2) The Corporation by means of a pipe laid in any such street or part of a street as is first referred to in subsection (1) of this section may with the consent of any local authority company body or person supplying water under parliamentary authority to the area which includes the houses outside the water limits abutting upon such street or part of a street supply such houses with water.

(3) The owner or occupier of any premises to which subsection (1) of this section applies may for the purpose of laying any communication pipe or of complying with any obligation to maintain any pipe or apparatus which he is liable to maintain exercise the like power of opening the ground between any main or pipe of the Corporation and his premises and of opening or breaking up so much of the pavement of the street as shall be between such main or pipe and his premises and any sewer or drain therein as if such street or part of a street were wholly within the water limits.

46.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Corporation may for the purpose of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Corporation and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets sewers gas air or water pipes electric lines wires and apparatus but shall use their best endeavours to avoid causing any interruption in the sewers gas air or water pipes electric lines wires and apparatus and shall before commencing any work by which such services would be interfered with give at least seven days' notice to any person likely to be affected :

Meters in streets to measure water or detect waste.

A.D. 1937.

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PART II.
—cont.

Provided that the Corporation shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878 :

45 & 46 Vict.
c. 56.

Provided also that nothing in this section shall extend to or authorise any interference with any works or apparatus of the Central Electricity Board except in accordance with the provisions of section 15 of the Electric Lighting Act 1882.

(2) The powers of this section shall not be exercised with respect to any railways works streets roads electric lines wires or apparatus belonging to or maintainable by a railway company except with the consent in writing of the company (which consent shall not be unreasonably withheld) nor shall the Corporation in carrying out such powers unreasonably interfere with or render less convenient the access to or exit from any railway station or railway depot belonging to the company.

Applica-
tion of
section 119
of Act of
1936 to
water
under-
taking.

47. For the purposes of the supply of water by the Corporation under the enactments relating to the water undertaking the Corporation shall have the powers of a local authority under section 119 of the Act of 1936 in respect of the carrying of water mains within or without their district and in exercising the powers of that section any area within the water limits shall be deemed to be included in their district.

For pro-
tection of
Holmfirth
Council.

48. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of the Holmfirth Council shall except so far as may be otherwise agreed between the Corporation and the Holmfirth Council apply and have effect (that is to say) :—

(1) In this section “the said works” means the works authorised by the section of this Act of which the marginal note is “Power to make waterworks” and any works apparatus and appliances in connection therewith or subsidiary thereto and constructed under the powers of this Act :

(2) So much of the said works as will be constructed in any street in the urban district of Holmfirth shall be constructed in such position therein

(being within the limits of deviation marked on the deposited plans) as the Holmfirth Council in writing under the hand of their surveyor may reasonably direct :

A.D. 1937.
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PART II.
—cont.

- (3) For the purpose of any notice required under section 30 of the Waterworks Clauses Act 1847 to be given by the Corporation to the Holmfirth Council in relation to the said works the period of seven days shall be substituted for the period of three days mentioned in that section :
- (4) The plan required by section 31 of the Waterworks Clauses Act 1847 in relation to the said works shall be accompanied by a section and a description of the said works and shall be delivered to the Holmfirth Council by the Corporation not less than fourteen days before the Corporation commence to open or break up any street in the urban district of Holmfirth for the purpose of constructing the said works Provided that in case of difference between the Corporation and the Holmfirth Council with reference to such plan or section such difference shall be determined by arbitration :
- (5) Not less than fourteen days before the Corporation commence to construct any of the said works within the urban district of Holmfirth within three feet of any sewer water main or electricity main or other work of the Holmfirth Council (in this section called "the Holmfirth works") the Corporation shall deliver to the Holmfirth Council a plan and section of so much of the said works as will be within the said distance from the Holmfirth works :
- (6) No part of the said works shall be laid at a less distance than one foot six inches from any of the Holmfirth works (except where it may be necessary for the same to be laid across any such work) and any part of the said works which is to be laid across any of the Holmfirth works shall be so constructed and laid down as to leave between them a space of one foot at least and to be self-supporting for a distance of three feet at least on either side of the point of crossing :

PART II.
—*cont.*

- (9) The said works shall be executed so as not unreasonably to interfere with the traffic on any street in the urban district of Holmfirth or the flow of sewage or the supply of water or electricity in any of the Holmfirth works :

- (10) The expense of all repairs or renewals of the Holmfirth works or any works in connection therewith which may be rendered necessary by any act or default of the Corporation their contractors agents workmen or servants at any time or by reason of any subsidence resulting from the works of the Corporation whether during the construction of the said works or at any time within six months after the completion thereof shall be borne and paid by the Corporation :
- (11) Any additional expense reasonably incurred by the Holmfirth Council in enlarging improving or reconstructing any of the Holmfirth works or laying any new or additional sewers water mains electricity cables mains or pipes by reason of the construction of the said works shall be repaid to them by the Corporation :
- (12) If any difference shall arise under this section between the Corporation and the Holmfirth Council the same shall be determined by arbitration.

A.D. 1937.
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PART II.
—cont.

PART III.

WATER SUPPLY.

49.—(1) The Corporation may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to take for the purposes of any of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water.

Byelaws for preventing pollution of water.

(2) The byelaws made under this section shall be in force within so much of the borough and the urban districts of Holme Holmfirth Marsden Meltham Saddleworth Scammonden Slaithwaite and South Crosland or any of them as may be defined in the byelaws.

(3) In addition to the requirements of section 250 of the Act of 1933 the Corporation shall exhibit in some conspicuous place in each of the areas referred to in subsection (2) of this section in which the said

A.D. 1937. byelaws are for the time being in force a copy of the
notice referred to in that section and any landowner
who may be affected by any such byelaws shall be entitled
to be furnished with a copy thereof and to oppose the
confirmation thereof.

PART III.
—cont.

(4) A copy of any such byelaws shall be sent to the clerk of the county council one month at least before application is made for their confirmation and before confirming the byelaws the Minister shall have regard to any representations thereon which may be made within the said month by the county council.

(5) The Corporation shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section whose legal rights shall be injuriously affected by the restrictions imposed by such byelaws or who are required by such byelaws to construct any works or to do any act or thing which could not lawfully be required by the local sanitary authority of the district in which such lands are situate and such compensation shall be settled in default of agreement by arbitration and for the purposes of this subsection the expression "legal rights" shall include a user of land in respect of which the local authority might have taken proceedings under the Public Health Acts or under their byelaws but have decided not to do so having regard to the character or situation of the land.

(6) Notwithstanding anything in section 253 of the Public Health Act 1875 proceedings for the recovery of any penalty imposed by any byelaw made under this section may be taken by the Corporation without the consent in writing of the Attorney-General.

As to gross
value of two
or more
houses in
one occupa-
tion.

50. Where two or more houses or buildings connected by any means of communication not being a public highway are in the occupation of one and the same company body firm or person they shall be deemed for the purposes of determining the amount of the water rent chargeable by the Corporation in respect of any supply of water for domestic purposes furnished by the Corporation to any one or more of such two or more houses or buildings to be one tenement having a value (within the meaning of the Third Schedule to the Act

of 1869 as amended by subsequent legislation) equal to the aggregate values of the separate houses or buildings so occupied.

A.D. 1937.

PART III.

—cont.

51. Where water supplied by the Corporation to a person who takes a supply both for domestic purposes and by measure for trade or other purposes is used by him by means of a hosepipe or other similar apparatus for horses or washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if they think fit require that all water so used shall be taken by measure and paid for accordingly.

Supply by
hosepipe.

52.—(1) Where a person who takes a supply of water for domestic purposes from the Corporation otherwise than by measure desires to use any of the water so supplied for—

Charges for
supplies for
refrigerating
apparatus
&c.

- (a) a water-cooled refrigerating apparatus; or
- (b) any apparatus depending while in use upon a supply of continuously running water; or
- (c) any apparatus used for softening water which requires water for cleaning regenerating motive power or similar purposes;

the Corporation may if they think fit require that all water so used shall—

- (i) be taken by measure and paid for accordingly and in that event the minimum half-yearly charge for the water shall be ten shillings; or

- (ii) be paid for at such rates as may be agreed between such person and the Corporation.

(2) No charge shall be made under this section in respect of an apparatus used within the premises for which the supply of water is taken for softening water if one such apparatus only is used and the water softened thereby can be drawn off into a receptacle at one point only and is used solely for purposes for which the domestic rate is paid.

53. Where a supply of water to a farmhouse is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes

Supply for
farming
purposes.

A.D. 1937. to a farmhouse at the rents authorised by or in pursuance
of the Act of 1869 as amended by any subsequent
enactment.
PART III.
—cont.

Special
terms for
supplies to
caravans
shacks &c.

54.—(1) Notwithstanding anything in any Act relating to the Corporation a person shall not be entitled to demand or continue to receive from the Corporation a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Corporation to take a supply of water by meter and to pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Corporation by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

Revision of
water rents
outside
borough.

55.—(1) Notwithstanding anything contained in section 68 of the Act of 1869 or any other enactment the Minister may if he thinks fit from time to time on the application of the Corporation or of any local authority having for the time being jurisdiction within any part of the water limits by order prescribe a table of the maximum rents and charges for the supply of water for domestic purposes which the Corporation as from such date as may be fixed by the order shall be authorised to charge within the whole or any part of so much of the water limits as lies outside the borough and the township of Meltham :

Provided that the maximum rents and charges prescribed in any such order shall be of such amounts

A.D. 1937.

(3) Where a house or building is at the passing of this Act divided into two or more parts occupied as separate tenements but is supplied by one communication pipe only the Corporation shall not require a separate communication pipe to be laid into each such part of the house or building unless and until the communication pipe by which the house or building is supplied becomes defective or requires renewal or unless and until the house or building is structurally altered so as to comprise a larger number of parts occupied as separate tenements than the number of parts so occupied at the passing of this Act.

(4) Where a house or building belonging to one owner is divided into two or more parts each of which is occupied as a separate tenement and the owner agrees with the Corporation in writing to pay the water rates in respect of every part of the house or building so occupied as a separate tenement then so long as the owner duly pays the water rate in respect of every such separate part of the house or building the Corporation shall not require a separate communication pipe to be laid into each such separate part of the house or building.

As to communication pipes,

57.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain or repair any pipe or apparatus used for the supply of water from the waterworks of the Corporation the person liable to maintain or repair the same shall have the like power to open the ground as is conferred upon him by sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes subject nevertheless to the conditions imposed by those sections.

(2) The Corporation by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe or apparatus and for that purpose to open or break up any street in the water

as in the opinion of the Minister are equitable having regard to— A.D. 1937.

PART III.
—cont.

- (a) the rents and charges charged for the supply of water for domestic purposes within the borough and the township of Meltham;
- (b) the amount of any deficiency or other rate for waterworks purposes whether levied under section 61 of the Act of 1869 or any other enactment;
- (c) the necessity of providing a reasonable contribution towards the reserve fund in respect of the water undertaking so long as such fund does not amount to the maximum prescribed in relation to that fund by the section of this Act of which the marginal note is "Reserve funds"; and
- (d) any other relevant circumstances.

(2) Before making any such order the Minister shall consider any representations made to him by the Corporation and any local authority referred to in subsection (1) of this section and may if he deems it expedient and if so required by the Corporation or any such local authority shall hold a local inquiry.

(3) In the absence of exceptional reasons the Minister shall not vary the rents and charges which the Corporation are for the time being authorised to charge under this section at less intervals than three years.

(4) Any order made by the Minister under this section shall have effect as if enacted in this Act.

56.—(1) The Corporation shall not be bound to supply with water more than one house or building or part of a house or building occupied as a separate tenement by means of the same communication pipe and they may if they think fit require that a separate communication pipe be laid from the main of the Corporation into each house or building or part of a house or building occupied as a separate tenement supplied by them with water. Separate communication pipes may be required.

(2) If the owner of any house or building or part of a house or building occupied as a separate tenement which is supplied with water by the Corporation when so required in pursuance of the preceding subsection

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxix.]
1 GEO. 6.] *Act, 1937.*

limits may subject to the like conditions execute such works on behalf of such owner or occupier and subject to the terms of the agreement any reasonable expenses incurred by the Corporation shall be repaid by the owner or occupier with whom the agreement is made.

A.D. 1937.

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PART III.
—cont.

58. Notwithstanding anything in any Act relating to the Corporation the Corporation shall have the exclusive right of executing any works on any of the water mains of the Corporation for connecting any communication or service pipe therewith and the Corporation shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Corporation execute on any such main (subject to the provisions so far as applicable of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes) any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Corporation in so doing shall be repaid by the owner or occupier so requesting.

Corporation
to connect
communi-
cation pipes
with mains.

59. If in the opinion of the Corporation any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain it shall be lawful for the Corporation to execute such repairs to the communication pipe as they may think necessary or expedient in the circumstances without being requested so to do and if any injury to or defect in the communication pipe shall have been found the expense incurred by the Corporation for the purposes of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Corporation in like manner as the water rents in respect of the premises are recoverable. Provided that (except in emergency) the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given to the occupier of such house or premises (and if the water rents in respect of the house or premises are payable by the owner thereof to such owner) not less than twenty-four hours' previous notice of their intention so to enter.

Power to
Corpora-
tion to
repair
communi-
cation
pipes.

A.D. 1937.

PART III.

—cont.

Stopcocks
&c. to be
fitted in
communi-
cation
pipes.

60.—(1) The Corporation may in any case where the communication pipe is laid by the person requiring a supply of water to any premises or by the Corporation at the request of such person require such person at the time when the pipe is laid to insert or to have inserted and thereafter to maintain a stopcock (which expression where used in this section shall include the necessary covers or boxes for giving access and protection thereto) in the communication or service pipe from the said premises in some position to be reasonably approved by the road authority in the footway of the street in which such pipe is laid or if there be no footway in a position as near as reasonably practicable to the premises supplied and if such person fails to comply with such requirement the Corporation may insert and maintain a stopcock in such communication or service pipe and recover the reasonable expenses incurred by them in so doing from such person summarily as a civil debt.

(2) For the purpose of complying with any obligation under this section to insert or to maintain a stopcock and for the purpose of maintaining any existing stopcock in a communication or service pipe from any premises within the water limits the person liable shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(3) The Corporation may by agreement with any person liable to insert or to maintain any stopcock and for that purpose authorised to open or break up any street within the water limits execute such works on behalf of such person and any expenses incurred by the Corporation in so doing shall be repaid by the person with whom the agreement is made and shall be recoverable summarily as a civil debt.

Injuring
meters &c.

61.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fitting belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently

abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained.

A.D. 1937.

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PART III.
—cont.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fitting belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter or instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rents are recoverable.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fitting is under the custody or control of the consumer shall be prima facie evidence that such injury alteration prevention abstraction consumption or use (as the case may be) has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fitting.

62.—(1) Where water is supplied by measure the register of the meter or other instrument for measuring water shall be prima facie evidence of the quantity of water consumed and in respect of which any water rent is charged and sought to be recovered by the Corporation.

As to
register of
meters.

(2) Provided that if the Corporation and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the

PART III.
—cont.

(3) If any meter or other instrument for measuring water used by a consumer of water be proved to register erroneously the erroneous registration shall be deemed to have first arisen at the beginning of the then current half-year unless it be proved to have first arisen during the then current half-year. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and in the case of a surcharge shall be recoverable in the like manner as water rents are recoverable by the Corporation.

63. Before any person connects or disconnects any meter belonging to the Corporation by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of such meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

64. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Corporation who shall without the authority of the Corporation turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Corporation and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

65. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained:

A.D. 1937.

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PART III.

—cont.

Penalty for closing or shutting off valves &c.

Provided that this section shall not apply to a consumer closing the valve fixed on his communication pipe.

66.—(1) The Corporation and any local authority company or person authorised or empowered to supply water in any area comprised within the west riding of the county of York may enter into and carry into effect agreements for the supply of water in bulk by the Corporation to such authority company or person for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any local authority company or person supplying water under parliamentary authority in the area to be supplied nor if and so long as such supply would be likely to interfere with the supply of water for domestic or other purposes within the water limits.

Agreements for supply of water in bulk.

(2) Any agreement entered into between the Corporation and any such local authority company or person before the passing of this Act which would have been valid under this section if entered into after the passing thereof shall for all purposes be as valid as if it had been entered into after the passing of this Act.

PART IV.

LINDLEY MECHANICS HALL.

67. The scheduled agreement is hereby confirmed and made binding upon the parties thereto and shall be carried into effect according to the true intent and meaning thereof.

Scheduled agreement confirmed.

68. The transfer of the Lindley Mechanics Hall undertaking shall subject to the provisions of this Act and of the scheduled agreement be carried into effect

Transfer of Lindley Mechanics Hall.

A.D. 1937. and the said undertaking shall be transferred to and
vested in the Corporation as from the date of such
transfer and may be held exercised and enjoyed by the
Corporation and the trustees are hereby authorised and
empowered to transfer the said undertaking accordingly.

PART IV.
—cont.

Day of
transfer of
Lindley
Mechanics
Hall.

69. The day of transfer of the Lindley Mechanics Hall undertaking shall be such day prior to the first day of November nineteen hundred and thirty-seven as the parties to the scheduled agreement may agree and failing such agreement shall be that date.

Mainten-
ance and
control of
Lindley
Mechanics
Hall.

70. The Corporation shall hold the Lindley Mechanics Hall undertaking so vested in or transferred to them upon the terms of the scheduled agreement.

PART V.

SUPERANNUATION.

Meaning of
expressions
in Part V
of Act.

71. Words and expressions to which meanings are assigned by the Act of 1922 have in and for the purposes of this Part of this Act the same respective meanings unless there is something in the subject or context repugnant to such construction.

Reduction
or suspen-
sion of
salary or
wages.

72.—(1) In the event of the salary or wages of an officer or servant being either—

- (a) reduced in consequence of a reduction of the duties which he has to perform and not on the ground of misconduct; or
- (b) reduced on account of his mental or physical infirmity; or
- (c) reduced or suspended by reason of illness;

he may if he so desires with the consent of the Corporation either—

- (i) continue to contribute to the superannuation fund in all respects as if such reduction or suspension had not taken place; or
- (ii) pay into the superannuation fund forthwith on such reduction or suspension ceasing to have effect or on his resignation or on his otherwise ceasing to hold his office or employment whichever shall first occur (in this section referred to as “the material date”) or by such instalments as may be agreed between him

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxix.]
1 GEO. 6.] Act, 1937.

and the Corporation a sum equal to the difference between the amount (if any) which he has contributed thereto during the period of such reduction or suspension and the amount which he would have contributed thereto if such reduction or suspension had not taken place together with compound interest on that sum calculated at the rate of four per centum per annum with half-yearly rests.

A.D. 1937.

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PART V.
—cont.

(2) In the event of any sum payable by an officer or servant under paragraph (ii) of subsection (1) of this section being agreed to be paid by instalments the first instalment shall be not less than one-tenth of the total sum payable and shall be payable within one year from the material date and the whole of the instalments shall be payable within a period not exceeding ten years from that date with compound interest on the amount for the time being unpaid calculated at the rate of four per centum per annum with half-yearly rests as from the material date.

(3) In the event of an officer or servant making such payment or continuing to contribute as aforesaid—

(a) in the former case the amount of his salary or wages shall for the purposes of the Act of 1922 be deemed to be the amount of the salary or wages which he would have received; and

(b) in the latter case the amount of his salary or wages for the period in respect of which he so continues to contribute shall for the purposes of the Act of 1922 be deemed to be the amount of the salary or wages which he would have received in respect of that period;

if such reduction or suspension had not taken place.

(4) For the purpose of calculating the amount which may be or is required to be paid by way of return of contributions to or in respect of an officer or servant under sections 9 10 11 12 and 17 of the Act of 1922 the whole of the sum paid by him under this section (or if the amount is payable by instalments under subsection (2) of this section the amount of the instalments paid by the officer or servant to the date of the determination of the appointment or his death as the case may be) shall be treated as contributions

A.D. 1937. which have been paid by him to the superannuation fund of the Corporation.

PART V.
—cont.

(5) If any instalment of the sum payable by an officer or servant under this section remains to be paid at the date on which the officer or servant becomes entitled to a superannuation allowance the amount of each such instalment shall with accrued interest thereon be deducted from the payment or payments of superannuation allowance made next after the instalment has become due until the whole sum payable has been recovered.

As to proof
of con-
tinued
existence of
pensioners.

73. Notwithstanding anything contained in the Act of 1922 the Corporation shall not be required to make any payment by way of superannuation allowance under that Act to or for the benefit of any person unless satisfactory proof is given to the Corporation in such manner and at such times as they may from time to time require of the continued existence of such person.

Annuities
for widows.

74.—(1) Within one month before any date on which if he ceased to hold his office or employment an officer or servant would become entitled to a superannuation allowance under paragraph (b) or paragraph (c) of subsection (1) of section 6 of the Act of 1922 he may give notice in writing to the treasurer requiring that the provisions of subsection (2) or subsection (3) of this section as the officer may elect shall apply to him and to any wife to whom he is married on the date on which he becomes entitled to a superannuation allowance or (if he dies before ceasing to hold office or employment but would had he so ceased immediately prior to his death have been entitled to a superannuation allowance) to any wife to whom he is married at the date of his death and where any such notice is given then unless the Corporation (being of opinion that the state of health of such person regard being had to his age is not reasonably satisfactory) notify him within one month after the receipt by the treasurer of the notice that they do not intend to comply with the requirement subsection (2) or subsection (3) of this section as the case may be shall apply and the other provisions of this section shall have effect :

Provided that a notice under this subsection may be given in respect either of the whole or of a specified

part of an allowance and where it is given in respect of a specified part only of an allowance references in this section to the superannuation allowance shall be construed as references to such specified part of the superannuation allowance.

A.D. 1937.

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PART V.
—cont.

(2) In any case to which this subsection applies—

(a) the amount of the superannuation allowance payable to the officer or servant during the joint lives of himself and such wife as aforesaid shall in any case covered by Part I of the Second Schedule to this Act be such proportion of the superannuation allowance which would have been payable under the Act of 1922 if he had not given a notice under this section as is specified in that part of that schedule as appropriate in relation to the ages of such officer or servant and his wife at the date of his retirement and in any other case such proportion of the said superannuation allowance as is certified by an actuary to be just;

(b) if he predeceases her and—

(i) was in receipt of or entitled to a superannuation allowance; or

(ii) dies before ceasing to hold office or employment but would had he so ceased immediately prior to his death have been entitled to a superannuation allowance;

she shall be entitled after his death to receive for life an annuity equal to one-third of the amount of the superannuation allowance which was or would have been payable under paragraph (a) of this subsection during their joint lives;

(c) if she predeceases him then as from the date of her death or his retirement whichever occurs last the superannuation allowance payable to him shall be an amount equal to two-thirds of the amount which was or would have been payable under paragraph (a) of this subsection during their joint lives;

A.D. 1937.

PART V.
—cont.

(3) In any case to which this subsection applies—

(a) the amount of the superannuation allowance payable to the officer or servant shall in any case covered by Part II of the Second Schedule to this Act be such proportion of the superannuation allowance which would have been payable under the Act of 1922 if he had not given a notice under this section as is specified in that part of that schedule as appropriate in relation to the ages of such officer or servant and his wife at the date of his retirement and in any other case such proportion of the said superannuation allowance as is certified by the actuary to be just;

(b) if he predeceases her and—

(i) was in receipt of or entitled to a superannuation allowance; or

(ii) dies before ceasing to hold office or employment but would had he so ceased immediately prior to his death have been entitled to a superannuation* allowance;

she shall be entitled after his death to receive for life an annuity equal to one-third of the amount of the superannuation allowance which was or would have been payable to him under the Act of 1922 if he had not given a notice under this section.

(4) The Minister may on application made by the Corporation by order alter as respects officers or servants giving notice under subsection (1) of this section after the date of the order any of the percentages specified in Parts I and II of the Second Schedule to this Act so far as may be necessary to secure that the benefits provided by this section for officers or servants and their wives shall be actuarially equivalent to the benefits to which the officers or servants would have been entitled if they had not given such notice as aforesaid.

(5) The first payment of any superannuation allowance to a person under this section shall be accompanied by a statement showing the amount of any annuity which may become payable under this section.

(6) An annuity under this section shall be payable out of the superannuation fund. Provided that if the superannuation allowance of the officer or servant was by reason of the proviso to subsection (1) of section 16 of the Act of 1922 not payable wholly out of the superannuation fund such proportion only of the annuity shall be paid out of the superannuation fund as corresponds to the portion of the said superannuation allowance which was so payable and the balance shall be charged to the accounts (forming part of the general rate fund) to which the salary or wages of the officer or servant to whom the allowance was granted are charged.

A.D. 1937.

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PART V.
—cont.

(7) If the officer shall die after becoming entitled to a superannuation allowance but before he would have been entitled to receive by way of superannuation allowance if he had not given notice under this section an amount in the aggregate equal to the amount of his contributions to the superannuation fund with compound interest thereon at three per centum per annum calculated by half-yearly rests the Corporation shall pay to his legal personal representative the difference between the amount which the officer would have been entitled to receive as aforesaid and the sum to which his contributions to such fund with such compound interest thereon at the rate and calculated as aforesaid amounted at the date of his retirement.

(8) In any case to which subsection (7) of this section applies the Corporation shall not be required to make any payment to the legal personal representative of the deceased officer under the provisions of subsection (2) of section 12 of the Act of 1922.

(9) An annuity under this section shall not be capable of assignment or transfer.

PART VI.

FINANCE.

75.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow at interest without the consent of any sanctioning authority for and in connection with the

Power to
borrow.

A.D. 1937.
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PART VI.
—cont.

purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within such periods as the Corporation may determine not exceeding the respective periods mentioned in the third column of the said table (namely) :—

1.	2.	3.
Purpose.	Amount.	Period for repayment.
(a) The purchase of lands	£ 62,635	Sixty years from the date or dates of borrowing.
(b) The acquisition of easements	100	Thirty years from the date or dates of borrowing.
(c) The purchase of the Holme reservoirs	The sum requisite.	Sixty years from the date or dates of borrowing.
(d) The construction of Work No. 1 authorised by this Act.	459,715	Sixty years from the date or dates of borrowing.
(e) The construction of Works Nos. 2 3 and 4.	8,050	Twenty years from the date or dates of borrowing.
(f) The construction of Work No. 9	20,000	Thirty years from the date or dates of borrowing.
(g) The construction of Works Nos. 6 8 and 10.	68,500	Forty years from the date or dates of borrowing.
(h) The construction of Works Nos. 7 and 11 (except filtration plant and pumping and other machinery).	11,830	Forty years from the date or dates of borrowing.
(i) Filtration plant (Work No. 7) and pumping and other machinery (Work No. 11).	19,170	Fifteen years from the date or dates of borrowing.
(j) The extension of mains and other purposes of the water undertaking.	50,000	Thirty years from the date or dates of borrowing.
(k) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxiix.]
1 GEO. 6.] *Act, 1937.*

Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

A.D. 1937.
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PART VI.
—cont.

76. Sections 213 and 214 of the Act of 1933 shall apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Corporation shall make such adjustments of any existing sinking funds as may be proper.

Application of Act of 1933 to existing sinking funds.

77. Notwithstanding anything in this or any other Act the Corporation may use for the purpose of any statutory borrowing power exerciseable by them any moneys forming part but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve capital reserve renewals and repairs depreciation contingent accident insurance or other similar fund (in this section referred to as "the lending fund") subject to the following conditions:—

Use of moneys forming part of sinking and other funds.

(a) The moneys so used shall be repaid out of the general rate or the general rate fund to the lending fund within the period and by the methods within and by which a loan raised under the statutory borrowing power would be repayable. Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding (as the case may be) as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the general rate or the general rate fund or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power;

(b) In the accounts of the general rate fund an amount equal to interest calculated at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would

A.D. 1937.

PART VI.
—cont.

be payable on a loan raised on mortgage under the statutory borrowing power on any moneys so used and for the time being not repaid shall be credited to the lending fund and debited to the undertaking or purpose with reference to which the moneys are so used;

- (c) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

Closing of
transfer
books.

78.—(1) The Corporation may close any transfer books or the registers of transfers of authorised securities (other than stock) during the whole of the period of thirty days or any shorter consecutive period next before the date on which any instalment of interest on such authorised securities is payable.

(2) The persons who on such closing day are entered in any book or register as holders of any securities of the class of which the book or register is so closed shall as between them and the transferees of those securities be entitled to the interest next payable thereon.

Reserve
funds.

79.—(1) If in respect of any year the moneys received by the Corporation on account of the revenue of any of the Corporation undertakings other than the electricity undertaking (including the interest and other annual proceeds received by the Corporation in that year on the investments representing or forming part of any reserve fund provided under the provisions of this section in respect of that undertaking) shall exceed the moneys expended or applied by the Corporation in respect of that undertaking for the following purposes (namely):—

- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;

(c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of or connected with the undertaking; A.D. 1937.
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PART VI.
—cont.

(d) All other expenses (if any) of the undertaking properly chargeable to revenue;

the Corporation may in respect of that year (if they think fit) apply out of the general rate fund a sum not exceeding the amount of such excess in providing a reserve fund in respect of that undertaking by setting aside such an amount as they may from time to time think reasonable and (unless applied in any other manner authorised by this Act) investing the same in statutory securities until the reserve fund so provided amounts in the case of the undertaking to the maximum reserve for the time being prescribed by the Corporation but not exceeding in the case of the water undertaking a sum equal to one-tenth in the case of the gas undertaking a sum equal to one-fifth in the case of the passenger transport undertaking a sum equal to two-fifths in the case of the markets undertaking a sum equal to one-fifth and in the case of the estate undertaking a sum equal to one-tenth of the aggregate capital expenditure on those undertakings respectively.

(2) Any reserve fund which has been provided in respect of any of the Corporation undertakings and which is in existence on the first day of April nineteen hundred and thirty-seven (whether the same be authorised by statute or not) shall be carried to and form part of any reserve fund provided under this section in connection with that undertaking.

(3) The Corporation shall in every year so long as any reserve fund provided under this section is less than the maximum prescribed by or under this section transfer to that reserve fund out of the general rate fund an amount equal to the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the reserve fund and carried to the general rate fund.

(4) Any reserve fund provided under this section may be applied in making good to the general rate fund any deficiency at any time happening in the income of the Corporation from the undertaking

A.D. 1937. in connection with which it is formed or to meet any
PART VI. extraordinary claim or demand at any time arising
—cont. against the Corporation in respect of that undertaking
or for payment of the cost of renewing improving
or extending any works lands or buildings forming part
thereof or otherwise for the benefit of that undertaking
and so that if that reserve fund be at any time reduced
it may thereafter be again restored to the prescribed
maximum and so from time to time as often as such
reduction happens.

(5) Resort may be had to a reserve fund provided
under the foregoing provisions of this section although
such reserve fund may not at the time have reached
or may have been reduced below the prescribed
maximum.

Capital
reserve
fund.

80.—(1) The Corporation may establish a fund
to be called “the capital reserve fund” for the purpose
of defraying any expenditure to which capital is properly
applicable (other than expenditure in connection with
the water undertaking the gas undertaking the electricity
undertaking the passenger transport undertaking and
any undertaking in respect of which the Corporation
have for the time being provided a reserve fund under
the provisions of the section of this Act of which the
marginal note is “Reserve funds”) to an amount not
exceeding five thousand pounds except with the consent
of the Minister in any one transaction and such fund
shall be formed by appropriating in such accounts such
sums out of the general rate fund as the Corporation
from time to time deem expedient :

Provided that—

(a) any sum so appropriated to the capital reserve
fund from the general rate fund shall not
exceed in any year the equivalent of a rate
of twopence in the pound calculated according
to the rules made pursuant to section 9
of the Rating and Valuation Act 1925 ;

(b) appropriations to and payments into the
capital reserve fund out of the general rate
fund shall cease to be made whenever the
said fund amounts to the sum of twenty-five
thousand pounds.

15 & 16
Geo. 5. c. 90.

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxix.]
1 GEO. 6.] *Act, 1937.*

(2) (a) Pending the application of the capital reserve fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by this Act) be invested in statutory securities.

A.D. 1937.

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PART VI.
—cont.

(b) Any income arising from the investment or use of the moneys in the capital reserve fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to the capital reserve fund.

81.—(1) The Corporation may if they think fit in any year carry from the general rate fund or from the proceeds of the general rate to the credit of a fund to be called “the renewal and repairs fund” (a) any sum not exceeding an amount equal to twelve and one half per centum of the cost incurred by the Corporation (otherwise than for the purposes of the Corporation undertakings) in connection with the provision of horses carts mechanically propelled vehicles stables depots boilers and equipment and apparatus in connection therewith as shown in the accounts at the thirty-first day of March in any such year and (b) any sum not exceeding the average annual cost incurred by the Corporation during the previous three years in connection with the maintenance and repair of buildings (other than buildings forming part of or used for the purposes of the Corporation undertakings or buildings in respect of which the Corporation are required by the Housing Acts to keep a housing repairs account).

Renewal
and repairs
fund.

(2) The maximum amount standing to the credit of the renewal and repairs fund shall not at any time exceed ten thousand pounds.

(3) The renewal and repairs fund shall be applicable only to meet expenses requisite for the maintenance and renewal of the appliances works equipment and buildings referred to in subsection (1) of this section and shall be so applied from time to time for the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses.

A.D. 1937.

PART VI.
—cont.

(4) (a) Pending the application of moneys forming part of the renewal and repairs fund to the purposes authorised in subsection (3) of this section such moneys shall (unless applied in any other manner authorised by this Act) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the renewal and repairs fund in manner provided by this subsection together with any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (2) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

Insurance
fund.

82.—(1) The Corporation may (if they think fit) establish a fund to be called “ the insurance fund ” with the view of providing a sum of money which shall be available for making good all losses damages costs and expenses to which the Corporation may be subjected in consequence of the whole or any part of all or any of the following risks (that is to say):—

- (a) Risk of fire in respect of buildings works premises and the contents thereof and other property whether belonging or on loan to or under the care custody or control of the Corporation;
- (b) Risk of accident and claims by third parties in respect of any vehicles whether belonging to or hired by or under the control of the Corporation and whether drawn or propelled by man or horse or mechanical or other means or power;
- (c) Risk of explosion in respect of boilers or at the gasworks of the Corporation;
- (d) Risks under the common law the Employers’ Liability Act 1880 the Workmen’s Compensation Act 1925 or any Act or Acts for the time being amending or extending those Acts or otherwise in respect of accidents to the officers servants or workmen of the Corporation or to third parties;
- (e) Risks of injuries to school children through accident caused by the negligence of a teacher

43 & 44 Vict.
c. 42.
15 & 16
Geo. 5. c. 84.

attendant or other person or defect in any school premises provided or maintained by the Corporation;

A.D. 1937.

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PART VI.
—cont.

- (f) Risks of mechanical or electrical breakdown at or in connection with any of the electricity or other works of the Corporation;
- (g) Risks of loss due to infidelity of officers or servants of the Corporation;
- (h) Any other risks against which in the absence of such an insurance fund the Corporation would ordinarily insure.

(2) For the purposes of this section the Corporation may if they deem it expedient include in the risks provided for under paragraphs (d) and (e) respectively of subsection (1) of this section risks of accident to any teacher employed in any public elementary school maintained by the Corporation notwithstanding that such school has not been provided by the Corporation as the local education authority and risks of injuries to school children through accident caused by the negligence of any such teacher.

(3) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices of good repute against the whole or any part of all or any of the several risks for which the insurance fund is intended to provide.

(4) In every year after the establishment of the insurance fund the Corporation shall pay into that fund either—

- (a) Such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the several risks for which the insurance fund is intended to provide; or
- (b) If the Corporation partly insure in some insurance office of good repute against the whole or any part of the several risks for which the insurance fund is intended to provide such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

A.D. 1937.

PART VI.
—cont.

(5) When the insurance fund shall amount to such a sum as the Corporation may from time to time prescribe not being less than one hundred and fifty thousand pounds (in this section called “the prescribed amount”) the Corporation may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Corporation shall re-commence and continue the yearly payments to that fund in accordance with subsection (4) of this section until the fund be restored to the prescribed amount.

(6) The Corporation shall provide the yearly payments aforesaid by contributions from the revenues of the Corporation in respect of the particular undertaking or department of the Corporation which if the risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(7) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of risks for which the fund is intended to provide all moneys for the time being standing to the credit of the fund shall (unless applied in any other manner authorised by this Act) be invested in statutory securities and the interest and other annual proceeds received therefrom shall be carried to the general rate fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (4) of this section the Corporation shall in every year so long as the fund is less than the prescribed amount pay into that fund out of the general rate fund an amount equal to the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund shall be apportioned in the accounts of the Corporation between the several undertakings departments or services

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxix.]
1 GEO. 6.] Act, 1937.

liable to contribute to the insurance fund in such shares or proportions as may be equitable. A.D. 1937.

(8) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in consequence of risks for which it is intended to provide in the order of the dates on which such losses damages costs or expenses are so sustained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister borrow at interest such sums of money as will be necessary to make up the deficiency The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be provided by contributions from the revenues of the Corporation in respect of such undertakings departments or services of the Corporation in such proportions as the Minister may direct having regard to the risks through which such deficiencies arise.

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PART VI.
—cont.

PART VII.

MISCELLANEOUS.

83. Section 66 (Expenses of such removal and maintenance of persons in hospital) of the Act of 1876 is hereby repealed and the Act of 1876 shall have effect as if the following provisions were inserted therein in lieu of that section (namely):—

Expenses of removal and maintenance of persons in hospital.

Any expenses incurred by the Corporation in removing to or maintaining in a hospital or ward established by them any patient who is not a pauper shall be deemed a debt due to the Corporation from such patient or from the husband or parent or guardian of such patient if such patient be a married woman or infant and may be recovered from such patient or (if such patient be a married woman or infant) from such husband or parent or guardian and (in other cases) from the person whose duty it would be to relieve and maintain such patient under the provisions of section 14 of the Poor Law Act 1930 if the patient were a pauper.

20 & 21
Geo. 5. c. 17.

A.D. 1937.

PART VII.

—cont.

Extension
of section 35
of Act of
1882.

10 & 11 Vict.
c. 34.

Further
powers as
to entry
upon
premises.

84.—(1) The powers of making byelaws conferred upon the Corporation by section 35 (Knackers yards &c.) of the Act of 1882 shall extend to enable the Corporation to make byelaws requiring persons licensed to use any place as a knackers yard or for the slaughtering of animals or for dealing with the carcasses of dead animals and persons licensed or registered in pursuance of any regulation made by the Corporation under section 128 of the Towns Improvement Clauses Act 1847 (as incorporated with the Public Health Act 1875) to keep such registers and records relating to beasts and carcasses in connection with any such place as the byelaws may prescribe and to produce the same on being required so to do by any officer or other person duly authorised by the Corporation in that behalf.

(2) The powers of entry and inspection conferred by section 131 of the Towns Improvement Clauses Act 1847 shall extend to empower any such officer or other person to examine such registers and records.

85.—(1) The powers conferred on the Corporation by section 24 of the Electric Lighting Act 1882 of entering premises shall be extended as follows:—

(a) The premises which may be entered shall include all premises in the electricity limits in which electric fittings are being or have been installed with a view to taking a supply of electricity from the Corporation;

(b) The purposes for which premises may be entered shall include the following purposes that is to say the inspection of all meters and electric fittings on the premises whether belonging to the Corporation or not the ascertainment of whether or not there is or has been any contravention of any of the Acts or Orders applying to the Corporation or of any regulation or byelaw made thereunder and (where the Corporation are authorised under the provisions of any such Act Order regulation or byelaw to cut off the supply of electricity to the premises) the cutting off of such supply.

The Corporation shall not have any power of entry into any such premises except by an officer duly authorised by the Corporation who shall if so required produce his authority.

(2) Any person who shall refuse to admit any such officer to any premises which the Corporation are entitled to enter in pursuance of the said section 24 as amended by this section or shall hinder any such officer from entering any such premises or from exercising the powers conferred by the said section as so amended shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) For the purposes of this section "electric fittings" include electric lines meters accumulators fittings works and apparatus for the supply of electricity.

(4) The provisions of this section shall not apply to or in respect of any building or premises (not being a dwelling-house) belonging to and used by a railway company for the purposes of their railway or forming part of any station or goods depot.

86.—(1) Where the charges made by the Corporation for gas or electricity supplied by them for one purpose are less than the charges made by them for gas or electricity supplied for another purpose gas or electricity (as the case may be) supplied by the Corporation for the first-mentioned purpose shall not without the consent in writing of the Corporation be used (in the case of electricity whether after transformation or conversion or not) for the last-mentioned purpose and if any person to whom any gas or electricity is supplied uses it or suffers it to be used in contravention of the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

A.D. 1937.

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PART VII.
—cont.

Use for one purpose of gas or electricity supplied for another purpose.

(2) Where a person is convicted of an offence under this section in respect of the use of gas or electricity for any purpose the court may direct that all or any portion of the gas or electricity which has been supplied to him by the Corporation within one year previous to the date when the proceedings were instituted at a rate of charge lower than the rate of charge appropriate for gas or electricity supplied for the said purpose shall be charged for at the last-mentioned rate.

(3) For the purposes of this section electricity shall not be deemed to be used for lighting purposes by reason

A.D. 1937. only that it is used for the purposes of some electrical
PART VII. apparatus which contains a lamp if the purposes of the
—cont. apparatus as a whole are not lighting purposes.

As to
charges for
fittings &c.

87. If the Corporation commence proceedings for the summary recovery of a sum due to them for the supply of gas water or electricity any other payment due to the Corporation by the same consumer for the sale hire connection repair or maintenance of meters pipes fittings apparatus and appliances for the purposes of water supply or for lighting heating or motive power may be included in the same summons and may be recovered summarily as a civil debt provided the amount due in respect thereof does not exceed twenty pounds.

Charges
for special
reading of
meters.

88. When at the request of and for the convenience of any consumer of gas water or electricity supplied by the Corporation the reading of any meter in any premises takes place at a time other than that of the usual periodical reading the Corporation may levy and recover such charges as they think fit not exceeding two shillings for each such special reading.

For further
protection
of county
council.

89. For the further protection of the county council the following provisions shall unless otherwise agreed in writing between the county council and the Corporation have effect (that is to say):—

- (1) The Corporation shall not cause water to be discharged under the provisions of any of the sections of this Act of which the marginal notes are respectively "Power to make waterworks" "Discharge of water into streams" and "Byelaws for preventing pollution of water" into any stream or watercourse to which the Land Drainage Act 1930 applies (including any watercourse which is a channel forming part of a road repairable by the county council) in such a manner as to damage or affect injuriously any road approach or culvert so repairable:
- (2) Nothing in this Act shall derogate from or prejudicially affect the powers of the county council under the said Land Drainage Act 1930.

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxiix.]
1 GEO. 6.] *Act, 1937.*

90. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with the gas water or electricity undertakings of the Corporation.

A.D. 1937.

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PART VII.

—cont.

Service of
demand
notes.

91. Section 355 (Rates may be recovered by action or distress) of the Huddersfield Improvement Act 1871 shall extend and apply to all moneys due to the Corporation for or in respect of the supply of electricity.

Recovery of
moneys for
electricity
supply &c.
34 & 35 Vict.
c. cli.

92. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force in the borough other than the Act of 1936 any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Several
sums in one
summons.

93. Save as otherwise by this Act expressly provided all offences against this Act and all penalties and forfeitures imposed or recoverable under this Act may be prosecuted and recovered in a summary manner.

Recovery of
penalties &c.

94. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Act of 1933 shall be the Minister.

As to
byelaws.

95. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of any local enactment as if the same were re-enacted therein.

Application
of section 265
of Public
Health Act
1875.

96. Where under this Act any question dispute or matter is to be referred to or settled by arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the question dispute or matter shall be referred to an arbitrator to be agreed upon between the parties in difference or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

Applica-
tion of
Arbitration
Acts.

A.D. 1937.

PART VII.
—cont.

Inquiries by
Minister.

97. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

Application
of certain
provisions
of existing
enactments.

98. The following provisions of the Act of 1890 the Act of 1902 the Act of 1906 and the Act of 1913 shall extend and apply to and for the purposes of this Act as if those provisions were with all necessary modifications re-enacted in this Act (namely):—

The Act of 1890—

Section 25 (Power to agree as to drainage of lands &c.):

The Act of 1902—

Section 8 (Power to make subsidiary works):

The Act of 1906—

Section 37 (Persons under disability may grant easements &c.);

Section 38 (Owners may be required to sell parts only of certain lands and buildings);

Section 42 (Power to retain sell &c. lands);

Section 43 (Proceeds of sale of surplus lands);

Section 88 (Crown rights):

The Act of 1913—

Section 55 (Power to purchase and hold lands and exercise powers for protection of waters);

Section 59 (Prevention of plumbism):

Provided that—

(a) the said section 38 of the Act of 1906 in its application to this Act shall be read and have effect as if the premises which are numbered on the deposited plans 446 in the urban district of Holmfirth were therein referred to instead of the premises described in the schedule to that Act;

- (b) nothing contained in the said section 42 of the Act of 1906 as extended and applied by this section to and for the purposes of this Act shall release the Corporation or any person purchasing or acquiring any lands from them under that section as so extended and applied from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed;
- (c) in the exercise of the powers of the said section 42 of the Act of 1906 as so extended and applied the Corporation shall not without the consent of the Minister sell lease or otherwise dispose of any lands or interests therein at a price or rent or for a consideration or value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

A.D. 1937.

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PART VII
—cont.

99.—(1) The following sections of the Act of 1936 shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say) :—

Application
of certain
provisions
of Act of
1936.

Section 293 (Recovery of expenses &c.);

Section 304 (Judges and justices not to be disqualified by liability to rates);
and

Section 328 (Powers of Act to be cumulative).

A.D. 1937.

PART VII.
—cont.

(2) The following sections of the Act of 1936 shall extend and apply in relation to this Act and any local Act or Order or byelaw for the time being in force in the borough as if such sections were re-enacted or comprised herein or in such local Act or Order or byelaw and in terms made applicable thereto respectively (that is to say):—

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 286 (Proof of resolutions &c.).

Repeal.

100. The following enactments are hereby repealed as from the date of this Act :—

The Act of 1882—

Section 55 (Power to create fire insurance fund);

Section 56 (Accident fund to meet compensation under 43 & 44 Vict. c. 42).

The Act of 1902—

Section 56 (Authentication and service of notices).

Costs of
Act.

101. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1937.

THE FIRST SCHEDULE.

MEMORANDUM OF AGREEMENT made the twenty-ninth day of October one thousand nine hundred and thirty-six between FRED STANCLIFFE WILKINSON of Victoria Street Lindley in the county borough of Huddersfield retired woollen merchant THOMAS HENRY MOORE of Birksgate Kirkburton near Huddersfield aforesaid wool merchant WILLIAM BROOK of Acre Street Lindley aforesaid clerk BEN CROSLAND of The Portlands Lindley aforesaid woollen manufacturer ALLEN DEARNLEY of 46 Brian Street Lindley cloth finisher JOE WILLIAM DYSON of Victoria Cottage Lindley card clothing manufacturer WILLIAM EDWARD DYSON of Lea Street Lindley clerk TITUS LOCKWOOD of 100 Birkby Hall Road Huddersfield woollen manufacturer and JOSEPH WALKER of Marsh House Lindley solicitor (who are hereinafter called "the trustees") of the one part and THE MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF HUDDERSFIELD aforesaid (hereinafter called "the Corporation") of the other part.

Stamp.

Ten
shillings.

WHEREAS by an indenture dated the ninth day of September one thousand eight hundred and ninety-seven and made between James Nield Sykes Alfred Walker Frederick William Sykes and John Sykes of the one part and the said Alfred Walker John Sykes and Frederick William Sykes and Herbert Higginson Sykes Benjamin Broadbent Hugh Smith Walker Joel Crosland Thomas Macqueen Hedley Peckett William Henry Wood Joseph Crosland George Charles Orrah Charles Webster Fred Stancliffe Wilkinson Thomas Henry Moore Joseph Smith and Joseph Wright Wood (who were thereafter designated and all included in the term "the said trustees") of the other part all that plot or piece of land or ground situate in Lindley aforesaid and containing on the north side thereof 80 feet and 10 inches on the south side thereof 81 feet and 8 inches on the west side thereof 70 feet and 3 inches and on the east side thereof 60 feet and 9 inches and in the whole an area of 618 square yards or

A.D. 1937.

1st Sch.
—cont.

thereabouts and formerly part of a certain close called the Sun Croft and which said land thereby conveyed was bounded on the west by Lidget Lane on the east by property of the trustees of Zion Chapel on the north by property then or formerly of Joseph Crosland and John William Batley and on the south by property of the trustees of Zion Chapel together with the Mechanics Hall cottage and all other buildings erected upon the said land was conveyed unto and to the use of the said trustees their heirs and assigns as joint tenants in fee simple upon the trusts and to and for the ends intents and purposes and subject to the powers and provisions thereafter expressed and declared concerning the same (that was to say inter alia) upon trust to permit the said buildings then standing and any other buildings for the time being upon the said plot of ground to be used as a mechanics hall public hall or for any public or general purposes for or of the inhabitants of that part of the borough of Huddersfield which was then known as the ward of Lindley-cum-Quarmby and generally for any purposes which the said trustees might in their discretion consider for the benefit of or desirable in the interests of the said inhabitants or any of them or for class rooms meeting rooms or for any other purposes of or in connection with or for the benefit of the members of the society commonly called the Lindley Mechanics Institute or the members of any other society having objects altogether or in part similar to the objects of the said institute or any objects which the said trustees might consider beneficial or desirable or for use as a night school and in particular that the said trustees might let the said buildings or any part thereof for tea meetings committee meetings society meetings or other meetings concerts balls soirees and for any other purposes for which the said trustees might in their discretion consider that the same might be used And it was declared that the said trustees might let the said buildings or any part thereof or permit the same to be used for the purposes of a Sunday school or for any religious purpose or for or in connection with any political or sectarian meeting or purpose but the use of the said premises for any such purpose as last aforesaid should not be an exclusive one but the same should be let in such a manner that parties of different opinion might if requiring so to do occupy the same on complying with the terms rules and regulations for the time being determined upon or approved by the said trustees And it was thereby further agreed and declared that the said trustees should have powers of sale and exchange over all or any part of the said trust premises exerciseable at the discretion of the whole of the trustees for the time being :

And whereas the trustees are the present trustees duly appointed of the said Mechanics Hall and trust premises :

And whereas there is at the present time a public feeling in favour of the said Mechanics Hall and trust premises being

taken over and carried on by the Corporation for the purposes hereinafter set out : A.D. 1937.

And whereas negotiations have taken place between the trustees and the Corporation and in consequence of such negotiations a meeting of the trustees duly convened was held on the twenty-second day of October 1936 at which it was resolved that the trustees transfer to the Corporation the parcel of ground buildings and premises comprising the Mechanics Hall and cottage adjoining together with the fittings and fixtures therein and also the investments cash assets and other property of every description held in connection with the said trust premises but subject to the sanction of Parliament being obtained as hereinafter provided :

1st SCH.
—cont.

And whereas the objects of the parties hereto cannot be attained without parliamentary sanction and it has been arranged between the parties hereto that these presents should be entered into with a view to the same being embodied in an Act of Parliament to be obtained by the Corporation and with this object it was further resolved at the said meeting first that the trustees should be requested and authorised to execute such agreement as they might deem proper for effecting the transfer of the said trust premises to the Corporation such agreement to be provisional on its being confirmed by Parliament and secondly that the trustees and all other proper persons should be respectively requested to render such help to the Corporation at the request and cost of the Corporation as the latter might require for the purposes of the passage through Parliament of a Bill for confirming such agreement as aforesaid :

Now it is hereby agreed by and between the parties hereto as follows :—

1. The trustees will as soon as these presents have been confirmed by Parliament as hereinafter mentioned convey and transfer unto the Corporation all the parcel of ground buildings and premises comprised in the hereinbefore recited indenture for all their estate and interest therein with all erections and buildings now being on the said plot of ground together with the fittings and fixtures therein and also the cash assets and other property of every description (including the investments more particularly specified in the Second Schedule hereto) belonging to the trustees in connection with the said trust premises subject nevertheless to all the liabilities affecting the same.

2. The Corporation will on such conveyance and transfer pay and discharge all existing liabilities (if any) of the trustees in connection with the erection of the said buildings and the fitting up of the same and all other liabilities of every kind connected with the trust premises up to the date of such conveyance and transfer as aforesaid.

1ST SCH.
—cont.

3. The Corporation will from the date of such conveyance and transfer as aforesaid carry on and use the said trust premises in accordance with the scheme set out in the First Schedule hereto.

4. The Bill to be promoted by the Corporation as hereinafter mentioned with reference to (inter alia) the said trust premises may at the option of the Corporation contain such further or other powers rights privileges and authorities as the Corporation may require and as Parliament may sanction together with all such borrowing and other powers as the Corporation may deem expedient for or in relation to the purposes set forth in the said scheme set out in the First Schedule aforesaid or any of them.

5. This agreement is provisional only and is subject to confirmation by Parliament. The Corporation may apply by Bill during the next session for parliamentary confirmation of these presents and for the necessary powers to carry them into effect. The trustees shall at the request and cost of the Corporation use their best endeavours to support such application.

6. Unless confirmation of these presents by Parliament is obtained before the thirty-first day of August 1937 either party hereto shall be at liberty by notice to the other to withdraw from the obligations hereinbefore entered into. This agreement is subject to such alterations if any as Parliament may think fit to make therein and if any material alteration is so made either party shall be at liberty to withdraw from the agreement before the passing of the Bill.

7. All costs of and incidental to the preparation of and to the carrying into execution of this agreement including the costs of the consequent application to Parliament and the necessary conveyance and transfers shall be paid and borne by the Corporation.

In witness whereof the trustees have hereunto set their respective hands and seals and the Corporation have caused their common seal to be affixed hereto the day and year first before written.

The FIRST SCHEDULE above referred to.

SCHEME FOR THE USE OF THE LINDLEY MECHANICS HALL AS A
BRANCH PUBLIC LIBRARY AND OTHER PURPOSES.

1. The management and control of the land buildings and premises agreed to be transferred to the Corporation as above mentioned and all property subsequently added thereto and

[1 EDW. 8. & *Huddersfield Corporation* [Ch. lxiix.]
1 GEO. 6.] *Act, 1937.*

all investments endowments and gifts (if any) for the benefit of the said trust premises shall be vested in the Corporation and shall be exercised by the Corporation acting by the council through its public library and art gallery committee the acts and proceedings of which committee shall be submitted to the council for approval.

A.D. 1937.
—
1st Sch.
—cont.

2. The general object of the scheme shall be the maintenance and management of the said buildings and premises for the purpose of a branch public library and such other purposes for the good rule and government of the Lindley district of the borough as the Corporation may approve.

From and after the date of the conveyance and transfer to the Corporation as aforesaid the trusts declared by the trust deed of the ninth day of September 1897 shall cease and determine.

The SECOND SCHEDULE above referred to.

£	s.	d.	
400	0	0	4 per cent. funding stock 1960-90.
142	0	0	3½ per cent. conversion stock.
315	8	0	Huddersfield Corporation 3 per cent. redeemable stock 1960.

Signed sealed and delivered by
the said FRED STANCLIFFE
WILKINSON WILLIAM BROOK
BEN CROSLAND ALLEN
DEARNLEY JOE WILLIAM
DYSON and WILLIAM
EDWARD DYSON in the
presence of—

FRED S. WILKINSON

L.S.

T. H. MOORE

L.S.

ALFRED BROOKE

WM. BROOK

L.S.

Clerk to

Messrs. Hall Walker &
Norton

Solicitors Huddersfield. BEN CROSLAND

L.S.

A.D. 1937.

1ST SCH.
—cont.

Signed sealed and delivered by ALLEN DEARNLEY
the said JOSEPH WALKER
in the presence of—

L.S.

SELWYN J. SYKES WALKER

Southacre Outlane
Huddersfield

Card Clothing
Manufacturer.

J. W. DYSON

L.S.

W. E. DYSON

L.S.

Signed sealed and delivered by
the said THOMAS HENRY
MOORE in the presence of—

TITUS LOCKWOOD

L.S.

NORMAN WINDLE

Thunderbridge

Gardener.

JOSEPH WALKER

L.S.

Signed sealed and delivered by
the said TITUS LOCKWOOD
in the presence of—

LEONARD SANGSTER

4 Batley Ave. Marsh
Huddersfield

Clerk.

The common seal of the MAYOR ALDER-
MEN and BURGESSES of the COUNTY
BOROUGH OF HUDDERSFIELD was
hereunto affixed in the presence of—

SAMUEL PROCTER

Town clerk.

L.S.

THE SECOND SCHEDULE.

A.D. 1937.

PART I.

Percentage of the full superannuation allowance payable under the Act of 1922 to an officer or servant which may be paid during the joint lives of such officer or servant and his wife in order that (1) his wife shall be entitled to receive during the remainder of her life after his death an annuity equal to one-third of the amount of the superannuation allowance payable during their joint lives and (2) the officer or servant shall be entitled to receive during the remainder of his life after the death of his wife an annuity equal to two-thirds of the amount of the superannuation allowance payable during their joint lives.

Age last birthday of wife at date of retirement of officer or servant.	Age last birthday of officer or servant at date of his retirement.							
	60	61	62	63	64	65	66	67
50	87	—	—	—	—	—	—	—
51	87 $\frac{1}{2}$	86 $\frac{1}{2}$	—	—	—	—	—	—
52	88 $\frac{1}{4}$	87 $\frac{1}{4}$	86	—	—	—	—	—
53	89	88	86 $\frac{3}{4}$	85 $\frac{1}{2}$	—	—	—	—
54	89 $\frac{3}{4}$	88 $\frac{3}{4}$	87 $\frac{1}{2}$	86 $\frac{1}{4}$	85	—	—	—
55	90 $\frac{1}{2}$	89 $\frac{1}{2}$	88 $\frac{1}{4}$	87	85 $\frac{3}{4}$	84 $\frac{1}{2}$	—	—
56	91 $\frac{1}{4}$	90 $\frac{1}{4}$	89	87 $\frac{3}{4}$	86 $\frac{1}{2}$	85 $\frac{1}{4}$	84	—
57	92	91	89 $\frac{3}{4}$	88 $\frac{1}{2}$	87 $\frac{1}{4}$	86	84 $\frac{3}{4}$	83 $\frac{1}{2}$
58	93	92	90 $\frac{3}{4}$	89 $\frac{1}{2}$	88 $\frac{1}{4}$	87	85 $\frac{3}{4}$	84 $\frac{1}{4}$
59	94	92 $\frac{3}{4}$	91 $\frac{3}{4}$	90 $\frac{1}{2}$	89 $\frac{1}{4}$	88	86 $\frac{3}{4}$	85 $\frac{1}{4}$
60	95	93 $\frac{3}{4}$	92 $\frac{3}{4}$	91 $\frac{1}{2}$	90 $\frac{1}{4}$	89	87 $\frac{3}{4}$	86 $\frac{1}{4}$
61	96	94 $\frac{3}{4}$	93 $\frac{3}{4}$	92 $\frac{1}{2}$	91 $\frac{1}{4}$	90	88 $\frac{3}{4}$	87 $\frac{1}{4}$
62	97	95 $\frac{3}{4}$	94 $\frac{3}{4}$	93 $\frac{1}{2}$	92 $\frac{1}{4}$	91	89 $\frac{3}{4}$	88 $\frac{1}{4}$
63	98	96 $\frac{3}{4}$	95 $\frac{3}{4}$	94 $\frac{1}{2}$	93 $\frac{1}{4}$	92	90 $\frac{3}{4}$	89 $\frac{1}{2}$
64	99 $\frac{1}{4}$	98	97	95 $\frac{3}{4}$	94 $\frac{1}{2}$	93 $\frac{1}{4}$	92	90 $\frac{3}{4}$
65	—	99	98	97	95 $\frac{3}{4}$	94 $\frac{1}{2}$	93 $\frac{1}{4}$	91 $\frac{3}{4}$
66	—	—	99 $\frac{1}{4}$	98 $\frac{1}{4}$	97	95 $\frac{3}{4}$	94 $\frac{1}{4}$	93
67	—	—	—	99 $\frac{1}{2}$	98 $\frac{1}{4}$	97	95 $\frac{3}{4}$	94 $\frac{1}{4}$

A.D. 1937.

PART II.

2ND SCH.
—cont.

Percentage of the full superannuation allowance payable under the Act of 1922 which may be paid to an officer or servant during his lifetime in order that his wife shall be entitled to receive during the remainder of her life after his death an annuity equal to one-third of the amount of such full superannuation allowance.

Age last birthday of wife at date of retirement of officer or servant.	Age last birthday of officer or servant at date of his retirement.							
	60	61	62	63	64	65	66	67
50	81 $\frac{3}{4}$	—	—	—	—	—	—	—
51	82 $\frac{1}{2}$	81	—	—	—	—	—	—
52	83	81 $\frac{3}{4}$	80 $\frac{1}{4}$	—	—	—	—	—
53	83 $\frac{3}{4}$	82 $\frac{1}{2}$	81	79 $\frac{1}{2}$	—	—	—	—
54	84 $\frac{1}{2}$	83 $\frac{1}{4}$	81 $\frac{3}{4}$	80 $\frac{1}{2}$	78 $\frac{3}{4}$	—	—	—
55	85 $\frac{1}{4}$	84	82 $\frac{3}{4}$	81 $\frac{1}{4}$	79 $\frac{3}{4}$	78	—	—
56	86	84 $\frac{3}{4}$	83 $\frac{1}{2}$	82 $\frac{1}{4}$	80 $\frac{3}{4}$	79	77 $\frac{1}{4}$	—
57	86 $\frac{3}{4}$	85 $\frac{1}{2}$	84 $\frac{1}{4}$	83	81 $\frac{1}{2}$	80	78 $\frac{1}{4}$	76 $\frac{1}{2}$
58	87 $\frac{1}{2}$	86 $\frac{1}{4}$	85	83 $\frac{3}{4}$	82 $\frac{1}{2}$	81	79 $\frac{1}{4}$	77 $\frac{1}{2}$
59	88	87	85 $\frac{3}{4}$	84 $\frac{1}{2}$	83 $\frac{1}{4}$	81 $\frac{3}{4}$	80 $\frac{1}{4}$	78 $\frac{1}{2}$
60	88 $\frac{3}{4}$	87 $\frac{3}{4}$	86 $\frac{1}{2}$	85 $\frac{1}{2}$	84 $\frac{1}{4}$	82 $\frac{3}{4}$	81 $\frac{1}{4}$	79 $\frac{3}{4}$
61	89 $\frac{1}{2}$	88 $\frac{1}{2}$	87 $\frac{1}{2}$	86 $\frac{1}{4}$	85	83 $\frac{3}{4}$	82 $\frac{1}{4}$	80 $\frac{3}{4}$
62	90 $\frac{1}{4}$	89 $\frac{1}{4}$	88 $\frac{1}{4}$	87 $\frac{1}{4}$	85 $\frac{3}{4}$	84 $\frac{1}{2}$	83 $\frac{1}{4}$	81 $\frac{3}{4}$
63	90 $\frac{3}{4}$	90	89	88	86 $\frac{3}{4}$	85 $\frac{1}{2}$	84 $\frac{1}{4}$	83
64	91 $\frac{1}{4}$	90 $\frac{1}{2}$	89 $\frac{3}{4}$	88 $\frac{3}{4}$	87 $\frac{3}{4}$	86 $\frac{1}{2}$	85 $\frac{1}{4}$	84
65	91 $\frac{3}{4}$	91	90 $\frac{1}{4}$	89 $\frac{1}{2}$	88 $\frac{1}{2}$	87 $\frac{1}{2}$	86 $\frac{1}{4}$	85
66	92 $\frac{1}{4}$	91 $\frac{1}{2}$	91	90 $\frac{1}{4}$	89 $\frac{1}{4}$	88 $\frac{1}{4}$	87 $\frac{1}{4}$	86
67	92 $\frac{1}{2}$	92	91 $\frac{1}{2}$	90 $\frac{3}{4}$	90	89	88	87

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